REPUBLIC OF SOUTH SUDAN

NATIONAL REVENUE AUTHORITY

STAFF REGULATIONS, 2022

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Staff Regulations, 2022

In exercise of the powers conferred upon me under Sections 29 (4) of National Revenue Authority Act, 2016, I hereby issue the following Regulations:

CHAPTER I
PRELIMINARY PROVISIONS

1. Title and Commencement

These Regulations shall be cited as the "Staff Regulations, 2022" and shall came into force on the date of its signature by the Minister.

2. Purpose

The purpose of these Regulations is to regulate procedures governing performance and staff behaviour while on duty

3. Authority and Application

These Regulations are drafted in accordance with the provision of section 29(4) of the Act, and shall apply to all staffs of National Revenue Authority.

4. Interpretations

In these Regulations unless the context otherwise requires:

"Abusive language"	means uttering of any words, drawings, writings, gestures or otherwise inciting hate, ridicule or contempt towards any person, gender, sex, group, race, tribe, religion or political opinion;
"Act"	means the National Revenue Authority Act, 2016;
"Appointing Authority"	means the Board or the Commissioner General;
"Approved Medical Doctor"	means a Medical Practitioner duly registered according to written laws and engaged by a Medical Institution approved by the Authority;
"Assets Declaration Form"	means a form approved by the Authority for declaring interests in assets and liabilities established by the Act;
"Authority"	means the National Revenue Authority;
"Board"	means the Board of Directors established under the Act;

"Bribery" means to give, offer, accept or obtain any gift, money or benefits as an inducement to make or not to make a decision in favour of the person and for employee's gain;

"Collective bargaining agreement" means an agreement between employer and trade union to regulate working salaries, working conditions, benefits and other aspects of workers' compensations and rights for workers;

"Commissioner General" means the Chief Executive Officer of the Authority;

"Criminal Offence" means offence of criminal nature chargeable in a Court;

"Department" means functional unit below division;

"Division" means functional unit in the Authority;

"Demotion" means a reduction of staff grade on disciplinary grounds;

"Disciplinary Authority" means the Board for all staff appointed by the Board and the Commissioner General for other staff;

"Disciplinary Committee" means the Board or any Committee constituted for the purpose of investigating, hearing, determining or recommending on a matter arising from a breach of the Staff Regulations of the Authority;

"Disciplinary Offence" means any act or omission or misconduct or failure to take reasonable care or failure to discharge duties in a reasonable or satisfactory manner by or on the part of staff which warrants disciplinary proceedings under these Regulations;

"Disciplinary Penalty" means termination, demotion, formal reprimand or a written warning;

"Domicile" means a place in the Republic of South Sudan where staff declares to be the permanent home at the time of employment, provided that a staff may request to change place of domicile;

"Drug" means any substance that produces physical, mental, emotional, or behavioural change in the user;

"Staff" means any person who has entered into or works under a written contract of employment with the Authority;

"Employer" means the National Revenue Authority;

"Family" means spouse, children, father and mother wholly or partly dependent upon the earning of the staff;

"Fraud"	means criminally cheating or deliberately attempting to deceive by giving false information (written or verbal), including falsifying or attempting to falsify;
"Grievance"	means a complaint or dissatisfaction by staff on any conditions of employment;
"Harassment"	means unwelcome verbal or physical behaviour that interferes with work or creates an intimidating environment, hostile, offensive work environment, examples include: public or private bullying by supervisor, subordinate, peer, severe or repeated insults related to personal or professional competence; threatening or insulting comments whether oral of written; deliberate discrimination malicious or knowingly false complaints against others;
"Insubordination"	means deliberate refusal by staff to carry out a lawful instruction given by a person in authority or any other form of disobedience or ridicule whether by words or deeds;
"Intern"	means a student seconded from a learning institution to acquire practical work experience in line with their field of study;
"Job Evaluation"	means the process of determining the worth of a job, how jobs shall be graded on the basis of the education and training required, the complexity of the work involved and the responsibility the staff may bear for the results of the work;
"Long Term Training"	means full time training with duration of over six months leading to an award of a degree, diploma or certificate;
"Management Committee"	means a committee composed of managerial staff;
"Managerial staff"	means Commissioner General, Deputy Commissioner General, Commissioner, Deputy Commissioner and Assistant Commissioner;
"Minister"	means the Minister responsible for Finance;
"Promotion"	means the appointment of staff to a higher grade;
"Reviewer"	means staff occupying a superior position to the immediate supervisor of the incumbent who reviews the staff performance;
"Senior Management"	means the Commissioner General, Deputy Commissioner General, Commissioners and Deputy Commissioners;

"Sexual Harassment"	means an act of uses position of authority in exchange for sexual favour, intimidate another staff or threaten a staff who refuses to engage in any type of sexual relations or unlawful act consisting of any physical or verbal behaviour that is unwelcome;
"Spouse"	means a wife or a husband, for the purpose of privileges and entitlements for which staff qualifies;
"Supervisor"	means any person who supervises and appraises a staff under him or her;
"Suspension"	means a temporary removal of staff from exercising the duties of his or her office after he or she has been convicted of an offence;
"Termination"	means cessation of employment;
"Transfer"	means movement of staff from one duty station to another;

CHAPTER II
NATIONAL REVENUE AUTHORITY ORGANISATION STRUCTURE AND OBLIGATIONS

5. Organisation Structure

(1) The Board shall approve the Organization Structure of the Authority based on the optimum requirements; the Commissioner General shall forward the same to the Minister who shall table it to the Council of Ministers for final approval.

(2) The Commissioners shall determine their staffing needs in consultation with the Commissioner for Corporate Service, there shall be no increase in the establishment at any grade or at any station, without the approval of the Commissioner General.

(3) Staff may be re-deployed between departments including stations for positions, which do not involve promotions at the discretion of the Commissioners in consultation with the Commissioner for Corporate Service.

6. Authority Divisions

The Authority is structured into five divisions and three independent departments which report directly to the Commissioner General.

7. Domestic Tax Revenue Division

(1) The Domestic Tax Revenue Division is charged with the administration of non-oil tax revenue.

(2) The Division shall be headed by a Commissioner who shall be responsible for the day to day running of the division subject to the direction of the Commissioner General and Board on matters of strategic policy.

8. Customs Revenue Division

(1) The Division is responsible for facilitation of trade and for collection of import duty, import sales tax, export duty, import excise and other taxes in accordance with Customs Act.

(2) The Division is to ensure the protection of revenue by preventing smuggling, this shall be done by physically patrolling the borders and other strategic points, examination of goods, and search of premises, as well as documents relating to the goods.

(3) As a frontline institution at the country's borders, Customs Division also plays a key role in surmounting external aggression and maintains the territorial integrity.

(4) The Division shall be headed by a Commissioner who shall responsible for the day to day running of the division subject to the direction of the Commissioner General and the Board on matters of strategic policy.

9. Corporate Service Division

(1) The Corporate Service Division covers the management of Finance, Human Resources, Administration, ICT Research and Planning Departments of the Authority.

(2) The Division shall be headed by a Commissioner who shall be responsible for the day to day running of the division subject to the direction of the Commissioner General and Board on matters of strategic policy.

10. Internal Audit Division

(1) The Internal Audit Division shall be responsible for conducting internal audit to ensure that the Authority's rules and procedures are adhered to and internal controls are operating as prescribed in the internal Audit Manual, Financial Regulations and applicable Public Financial Management and Accountability Act.

(2) The division shall be headed by a Commissioner who shall be responsible for the day to day running of the division subject to the direction of the Commissioner General and the Board on matters of strategic policy.

11. Internal Affairs Division

(1) The Internal Affairs Division shall be responsible for assessing Authority's ethical and integrity climate and drive strategies, regulations and policies to achieve the desired level of staff compliance to legal and ethical requirements.

(2) The division is also responsible for conducting both reactive and proactive special investigations on the allegations levelled against staff members.

(3) The Division shall be headed by a Commissioner who report to the Commissioner General and the Board on matters of strategic policy.

12. Taxpayer Service and Education Department

(1) The Taxpayer Service and Education is responsible for the authority's external communications as well as taxpayer service, information and education.

(2) The department is headed by a Deputy Commissioner who reports directly to the Deputy Commissioner General.

(3) Staff under the taxpayer service and education are vested with responsibility of registration of taxpayers at the divisional level under the Assistant Commissioner reporting administratively to the Commissioner of Domestic Tax Division and functionally to the Deputy Commissioner for Taxpayer Service and Education.

13. Legal Service and Board Affairs Department

(1) The department provides legal interpretation and support to Authority operations on legal and board matters.

(2) The division shall be headed by a Deputy Commissioner who shall be responsible for the day to day running of the department subject to the direction of the Commissioner General and the Board on matters of strategic policy.

14. Procurement and Logistics Department

(1) The Department provide technical expertise and oversee the effective management of the procurement of goods, works and services to ensure timely availability and standards desired.

(2) The department is headed by a Deputy Commissioner who is responsible for day to day running of the department and report to the Commissioner General and Deputy Commissioner General.

15. Management Committee Meetings

There shall be monthly Management Committee Meetings to discuss policy, strategies and operational issues of the Authority.

16. Integrity Committee

(1) There shall be Integrity Committees at Authority Headquarters, Revenue Divisions, State Revenue Offices and Customs.

(2) The main functions of these Committees shall be to devise and oversee the Observant of the Code of Conduct.

(3) The Commissioner General shall appoint members of Integrity Committees and provide specific terms of reference for every Integrity Committee.

(4) The Commissioner General shall report to the Board on quarterly basis, the progress on the observance of the Code of Conduct and give the status of integrity and ethics climate in the Authority.

17. General Obligations

(1) The Authority operations are based on confidentiality, trust and honesty.

(2) All staff are required to represent great loyalty, unquestionable integrity and willingness to protect the interests of the Authority.

(3) The following serve as basic guides to staff in preventing commission of any act which shall reflect adversely upon the staff or the Authority:

(a) every staff shall conduct himself or herself private affairs in a manner not intended to discredit or disrepute the Authority;

(b) every staff shall at all times both inside and outside the Authority premises, whether on duty or not, behave in a manner as befit any employee of the Authority, in particular, the staff shall exercise discreetness and common sense in their dealings with members of the public;

(c) every staff shall perform his or her official duties in accordance with the general instructions laid down by the Authority.

CHAPTER III
RECRUITMENT AND APPOINTMENT OF STAFF

18. Recruitment Policy

(1) The Authority recognizes that the preferred recruitment method is through an open and competitive process, applications shall be considered when a specific position, or a pool of positions, is being staffed, when voluntary applications are submitted, the Human Resource Department shall keep database of the applications for consideration alongside other applications through advertisement in accordance with the Act.

(2) Authority shall employ competent citizens of the Republic of South Sudan whenever possible; non- citizens may be employed only when it is not possible to find a competent citizen with suitable qualifications and shall be on contract on a specified term.

(3) The Authority is committed to recruit high calibre staff for successful attainment of its objectives.

(4) The Authority is an equal opportunity employer, it shall provide equal access to employment and ensure that the best available person is appointed to any given position free from discrimination on the basis of race, gender, religion, ethnicity, language, political, nationality, disability, pregnancy or HIV status.

(5) The Authority may engage temporary staff from time to time in order to supplement staff requirements, staff hired under this status shall be remunerated in accordance to the terms stipulated in the contract, temporary employment contract shall be for a maximum period of ninety (90) days.

(6) The Authority is committed to develop and promote its staff, any vacancies which may arise for positions other than Board appointees, shall be filled by a suitable staff through interdepartmental transfers or internal advertisements. In the absence of a competent internal candidate, vacancies shall be filled by competitive recruitment.

(7) The Commissioner for Corporate Service in liaison with the relevant Division or Department shall handle the recruitment process.

(8) The Management or the Board may appoint an external recruitment agent or institution to assist in the recruitment process, provided that the final approval shall remain a responsibility of the respective Appointing Authority.

(9) Appointments, promotions, or transfers to any post in the Authority shall adhere to qualifications as may from time to time be specified as necessary for appointment to the post.

(10) The Authority shall:

(a) embrace an open and competitive approach to recruitment and recruit the qualified candidates for jobs as advertised based on merit. The recruitment and selection process shall ensure the identification of the person best suited to the job and the Authority;
(b) encourage the recruitment of staff with disabilities and shall make reasonable adjustments to all stages of the recruitment process and as required in order for a successful candidate with a disability to undertake the post;
(c) ensure that in the recruitment process at least thirty-five percent (35%) gender rule is implemented according to the laws of the Republic of South Sudan;
(d) ensure that employment represents the face of South Sudan, that employment shall transcend tribal and religious affiliations;

(e) ensure that the recruitment and selection of staff is conducted in a professional, timely and responsive manner and in compliance with current employment legislation;
(f) provide appropriate training, development and support to those involved in recruitment and selection activities in order to meet the objectives of the Authority;
(g) Authority shall treat all applicants fairly, equitably and efficiently, with respect and courtesy, aiming to ensure that the candidate experience is positive, irrespective of the outcome;
(h) ensure that its recruitment and selection process is cost effective;
(i) ensure that if a member of staff involved in the recruitment process has a close personal or familial relationship with an applicant, he or she shall declare this as soon as he or she is aware of the individual's application and avoid any involvement in the recruitment and selection decision- making process;
(j) ensure that all documentation relating to applicants are treated confidentially; and
(k) ensure the information provided by an individual seeking employment is authentic.

19. Recruitment and Selection Procedures

(1) The Authority staff recruitment shall take into account the need for new ideas, approaches and commitment to ensure national diversity in her workforce.

(2) Vacancies in the approved staff establishment shall not be filled without a duly authorized Staff Requisition Form together with a job descriptions and performance indicators, these forms shall be filled by the Head of Department requesting additional staff and submitted to the Commissioner for Corporate Service, the respective heads of department shall be expected to provide the following:
(a) a justification for the new position;
(b) detailed job description and specifications;
(c) proposed entry level; and
(d) job specifications shall be updated for any vacant position(s) and approved by the Board.

(3) The job specifications shall state mandatory criteria in terms of skills, aptitudes, knowledge and experience for the job, all of which shall be directly related to the job and applied equally to all applicants and to ensure that criteria used do not indirectly discriminate against certain groups of applicants.

(4) New positions shall get the approval of the Commissioner General, where such positions are for senior management positions, approval shall be sought from the Board, the Commissioner of Corporate Services shall cause the approved vacant positions to be filled as appropriate.

(5) As a minimum requirement, all positions shall be advertised within the Authority for permanent employment, in the event that the internal advertisement has not attracted the suitable candidate, the Authority shall advertise vacant positions in at

least one (1) national daily newspaper with wide circulation, and also on the Authority's website, the advert shall remain open for a period of at least fourteen (14) days.

(6) Application letters for all positions shall be addressed to the Commissioner General and that short listing of candidates shall be done under the supervision of the Commissioner for Corporate Service. All shortlisted candidates shall be invited for an interview.

(7) There shall be interview panels to conduct interviews, the interview panels shall comprise a minimum of three (3) panellists selected by the Commissioner General based on the level of recruitment. Where recruitment is at senior level, a Board member shall form part of the panel, the Authority shall hire an expert to assist in the absence of in-house expertise.

(8) All candidates shall be assessed objectively against the selection criteria set out in the job requirements as advertised and according to other relevant provisions of the law.

(9) Minutes and final report of interview duly signed by the panellists shall be in the custody of the Commissioner for Corporate Service.

(10) All interviewed candidates shall be notified of the outcome within two (2) weeks from the day of the interview.

(11) In special cases, the Authority may head-hunt a staff, this shall apply to senior positions and head-hunting shall be approved by the Board where the target staff has special and rare skills necessary for the advancement of the Authority, such staff may be sought from outside South Sudan.

20. References

(1) A candidate shall be required to provide the names and contact addresses of persons who may be prepared to voluntarily give frank, honest and objective attestation of the candidate's qualifications, work, and conduct among others. The information shall be treated with utmost confidentiality by the appointing authority. The referees provided by the candidate shall include:
(a) persons from academic institutions attended;
(b) previous place of employment; and
(c) persons who have deep knowledge of the candidate's background.

(2) The employer reserves the right to verify any academic or professional certificate submitted in support of the application for employment.

(3) At least two referees shall form part of the documentation requirements for all job applicants.

(4) If the appointment is urgent, the Commissioner for Corporate Service may seek to obtain a verbal or telephone reference for the successful candidate provided that standard procedures for doing so are followed and approved by the Commissioner General.

(5) Referees shall be contacted with or without the candidate's consent and the information provided shall be treated as confidential by the panel members.

21. Background Check and Verification of Certificates

(1) The Commissioner for Corporate Service shall be responsible for background check and verification of certificates from the relevant institutions for all successful candidates.

(3) All staff to be appointed to the positions of Chief or Principal Officer and above shall be vetted, at the discretion of the Commissioner General.

22. Appointing Authority

(1) The power to appoint senior management staff shall be through competitive internal or external advertisement of all positions and successful candidate shall be approved by the Board, while the Commissioner General shall have the power to appoint staff at middle and junior positions.

(2) There shall be different recommending committees for positions at different levels, the committees shall constitute as interview panels.

(3) The Appointing Authority and recommending committees shall be constituted as in the following table:

Position/Grade	Recommending Authority	Composition	Appointing Authority
Commissioners and Deputy Commissioners	Commissioner General	N/A	The Board
Assistant Commissioners/Chief Officers and Principal Officers	Senior Management Appointments Committee (SMAC)	Deputy Commissioner General as Chairperson, three (3) Heads of Divisions as members and Commissioner for Corporate Services as Member and Secretary	Commissioner General
Senior Officers, Officers and Assistant Officers	Management Appointments Committee (MAC)	Commissioner for Corporate Services as Chairperson, three (3) Deputy	Commissioner General

		Commissioners as members; and Assistant Commissioner for	
Other Staff	Management Appointments Sub-Committee (MASC)	Deputy Commissioner for Finance and Administration as Chairperson; three (3) Assistant Commissioners as Members and Assistant Commissioner for Human Resources as Member and Secretary.	Commissioner General

(4) The Commissioner General shall appoint Chairperson and members of the respective Management Appointments Committees, who shall hold office for two (2) years and shall be eligible for re-appointment.

(5) Half of the members of the Appointment Committees shall form a quorum for a meeting. In the absence of the chairperson, the Committee may appoint any member to chair the meeting provided that they constitute a quorum for the meeting.

(6) The Commissioner General may delegate the conducting of interviews for positions in the Divisions falling under Management Appointment Sub Committee.

23. Medical Examinations

All new staff shall undergo a medical examination at the cost of the Authority with an appointed medical facility. The appointment shall be subject to a candidate being declared medically fit by an approved Medical Doctor, who shall communicate the results confidentially to Authority through a duly filled form.

24. Staff Bio data

All newly appointed staff shall fill in staff bio data form on reporting for duty and shall notify the Human Resources Department in writing of any change of name, address, and other relevant personal particulars within thirty (30) days of any change, the particulars shall be updated regularly in the personal file and in the system as and when the change is notified.

25. Staff Declaration Form

(1) All staff have a duty not to disclose without proper authority any information that has been obtained in the course of official duties, this includes all documents, records, and information stored electronically.

(2) Engagement in any of the following ways shall be considered as misuse of official information and may lead to disciplinary action:
(a) leaking information;
(b) use of information for personal or private gain;

(c) taking advantage of a person on the basis of information gained through official records; and
(d) removing, altering or destroying official records.

(3) All staff shall complete declaration form and submit to the Head of Department responsible for Human Resources.

26. Staff Identity Cards

(1) The staff shall be issued with identification cards indicating their particulars as they are assigned to access the premises during working hours.

(2) The Heads of Department or Division shall determine staff to be issued with staff identification card when on duty outside Authority premises and shall be required to produce their identity cards on demand.

(3) Staff whose identity card requires replacement shall produce an authentic proof of loss or damage before replacement from right authority (police and Human Resource Department).

27. Staff Probation Period

(1) Staff appointed on permanent or contractual terms shall serve a probationary period of three (3) months.

(2) The respective Head of Department shall carry out a performance appraisal to determine suitability for confirmation for permanent employment or termination as the case may be, such appraisal shall be carried out and communicated to the Commissioner for Corporate Service at least one month before expiry of the probation period, the concerned staff shall be notified of the performance appraisal results in writing.

(3) In case of an interruption during the course of probation, the probation may be extended to cover the period of absence.

(4) The probationary period may be extended for a period not exceeding three months if management deems it necessary, where the staff probationary period is extended the staff shall be informed in writing.

(5) The Appointing Authority or a newly appointed staff on probation may terminate appointment at any point before the probationary period expires by giving a twenty-four (24) hours' notice.

28. Confirmation of Appointment

(1) Confirmation shall take effect from the date when the staff completes satisfactorily his or her probation, where the probation is extended, confirmation shall take effect from the date when the staff completes the extended probation.

(2) The Commissioner for Corporate Service shall issue a letter of confirmation soon after the approval of the respective Appointing Authority.

29. Letters of Appointment

(1) When approval for an appointment has been granted, a letter of appointment shall be issued, setting out the main terms and conditions of service, salary offered and details of the position.

(2) The offer of appointment shall include as far as possible the job description and performance standards for the job, the candidate shall immediately confirm acceptance of an offer and indicate the date of reporting for duty, the offer of appointment shall be valid for six weeks from the date of offer.

(3) Letters of appointment and Contracts for employment shall be in writing, signed by the Commissioner General or any other officer authorized to sign on his or her behalf and by the staff on the other part. Employment shall be on contractual or permanent and pensionable terms and this shall be specified in the contract.

(4) Acceptance of an offer for a new appointment by a staff shall be construed as denouncement of the previous post and respective terms and conditions of employment.

(5) Staff may be appointed on temporary or casual basis upon identification and vetting by Human Resource Department, without requirement of external advertising and structured interviews.

(6) All successful candidates shall be appointed and report within three (3) weeks from the date of appointment unless a written extension period has been approved by the Commissioner General.

(7) The appointed candidate(s) shall notify the Commissioner General the acceptance of offer by returning an appointment letter duly signed within fourteen (14) days from the date of appointment.

30. Reporting Procedures

(1) New staff shall report to the Human Resources Department at the beginning of their first day of employment where they shall complete the necessary paperwork as an 'employment package' which shall be used to initiate their payroll formalities, appropriate employee benefits and to set up their personal file.

(2) Information on pay and mode of payment and the necessary facilities available shall be given to the staff, the new staff is required to complete or provide the following information and documents:

(a) a letter of employment and terms and conditions of service duly signed;
(b) copies of the current Curriculum Vitae (CV) and relevant certificates;
(c) two color passport-size photographs of the employee and his defendants;
(d) personal records form;

(e) originals and copies of relevant statutory documents such as National Identity Card, driving license, passport; and
(f) a staff bank details.

31. Recruitment of a Retired Person

A person who has reached compulsory retirement age may be re-appointed to the services of the Authority after obtaining the approval of the ministry responsible for public service following recommendation by the Board.

32. Appointment of Convicted Person or Persons with known Criminal Records

(1) A person who was previously convicted of a criminal offence or who has been previously removed or dismissed from the public service shall not be appointed to the service of the Authority.

(2) Where it is found that a staff has been appointed in contravention of these Regulations, the appropriate Appointing Authority shall nullify such appointment immediately.

33. Declaration of Assets and Financial Interest Form

Without prejudice to section 28 of the Act, there shall be declaration of assets and financial interest form:

(a) the form shall be submitted at the end of each calendar year on or before 31st December;
(b) the staff is required to declare all assets and liabilities:

(i) in his or her possession or ownership;
(ii) in the possession or ownership of his or her spouse;
(iii)in the possession of his or her children who under eighteen years; or
(iv)registered assets owned jointly with spouse, children or any other person.

CHAPTER IV
INDUCTION, ORIENTATION, TRAINING AND DEVELOPMENT

34. Induction

(1) All new staff shall undergo an induction program so as to facilitate their easy settlement in the new appointment and for quick familiarization with the Authority, the Human Resources department in liaison with the respective Departments shall ensure all new staff are inducted.

(2) The Recruitment Section in the Human Resources shall maintain an induction guidelines booklet and shall develop a comprehensive induction program for the new staff.

(3) The Human Resources Department and the receiving Division or Department shall provide the new staff with the necessary information to enable them blend in.

35. Orientation

(1) It is the policy of the Authority to conduct orientation programs for new staff as a process of disseminating information and providing direction.

(2) Orientation introduces staff to their new environment by providing them with the tools and knowledge they shall need to understand and adapt to their new workplace in order to work productively.

(3) New staff shall be introduced to the Authority and particular departments, locations, colleagues, rules and regulations, reporting times, break, lunch and leaving time shall be conducted by the Human Resources and Administration Departments in conjunction with the concerned Heads of Department.

(4) The staff shall be given an opportunity to seek clarification on what may not be clear to him or her about their new job, the Human Resources and Administration Departments shall provide the staff with the orientation guidelines booklet, orientation periods may vary from a minimum of three (3) days to a maximum of ten (10) days.

36. Transfers

(1) Transfer is a movement of a staff from one of the services within the Authority to another or from one class of posts to another class of posts within the same or different service, this may involve a change of designation and duties, the Commissioner General or designated officer shall approve the transfer of a staff where the exigencies of the service require the transfer to be made.

(2) The Authority may transfer a staff either on temporary terms or on long term at any time as may be deemed necessary, temporary transfers shall not extend beyond ninety (90) days after which the staff shall either be permanently transferred or returned to his or her original station.

(3) A staff may request to be transferred to new stations, such staff shall submit his or her application to the Commissioner for Corporate Service through Head of Department, with the exception of staff requesting for transfer on medical grounds all other staff applying or requesting for transfer shall be required to meet the cost for such transfers and shall not be entitled to transfer allowance.

(4) The Commissioner for Corporate Service shall maintain registry of staff transfers.

(5) If any vacancy arises at any station, the Commissioner for Corporate Service shall first go through the Transfer Application Register to determine whether there are any recorded applicants for the position at the requested workstation. If no request exists for transfer it may be the discretion of the Commissioner for Corporate to nominate candidates for transfer through the Commissioner General.

37. Training and Development

(1) Training and development is the key to ensure that the staff are equipped to meet present and future needs and challenges, the acquisition of skills, knowledge and the development of managerial and leadership know-how is critical for the effective management of the staff, it is the foundation of responsiveness, accountability and innovation.

(2) The overall aim of training in the Authority is to deliver cost effective training to all staff, to provide technical knowledge and personal skills to be able to perform their duties effectively and develop in their careers.

(3) There shall be an approved annual training plan and budget prepared by Commissioner for Corporate Service and approved by the training committee.

(4) Authority shall endeavour to secure sponsorship for its training plan, staff shall be encouraged to go for training on self-sponsorship provided that training is in the approved training plan, the approved training plan shall be circulated to all staff for information.

(5) Training for the purposes of this Regulations includes, *inter alia*, training courses, programs, seminars, workshops, individual lessons, and on the job training or coaching under the guidance of a trainer or facilitator to improve the performance of individual staff of the Authority.

(6) Training shall always take place in South Sudan; this does not exclude the Authority from engaging training providers from outside the Country.

(7) Staff shall seek approval through their respective supervisors to the Head of Human Resource Department to confirm the budget and the skills and knowledge gaps before recommending to the Commissioner General for ultimate approval to train in an approved skill gap identified in the staff appraisal.

(8) Participation of a staff in long term training requires the staff to sign a prescribed bonding form with the Authority setting forth the terms and conditions of such participation.

38. Eligibility for Training

(1) Participation in training shall be subject to training needs assessment conducted by the Commissioner for Corporate Service, each staff shall be required to undertake at least one training per year in order to improve competences and skills.

(2) Interns, visiting or sabbatical professionals and consultants are not eligible for training activities.

(3) The following criteria shall be used in selecting staff for long training:
(a) the staff shall be admitted by a recognized institute;

(b) the staff shall be confirmed and has worked with the Authority for a minimum of one year after confirmation or previous training;
(c) good performance and integrity;
(d) equal opportunity and gender sensitive; and
(e) a course shall be relevant to the business of the Authority.

(4) Staff on contract term appointment may be eligible for short external training, if their appointment does not expire within six months after the day of completion of the training.

39. Training Needs

(1) There shall be regular training needs analysis exercises to determine the priority training requirements, performance appraisal reports, future staffing requirements, departmental strategic objectives and the corporate plan shall provide information.

(2) The responsibility for the identification of training needs shall be vested in the line managers in collaboration with the Commissioners, Department and Section in the Authority and individuals may also identify their need for training.

(3) The Authority shall utilize interactive processes when identifying priority training needs, managers, supervisors and staff shall work together to identify priority training needs and agree on the competences that may be needed to ensure both the business and individual success.

(4) The process of training needs assessment shall be done annually and projection for training made, the Head of Division or Department responsible for Human Resource shall coordinate the training needs assessment.

40. Professional Qualifications

Authority shall sponsor its staff in terms of study program, tuition and examination fees to pursue professional qualifications in line with the approved training plan

41. Attendance to Training

(1) Staff shall be released to attend training approved in the training plan after receiving confirmation of admission.

(2) A staff who declines without any reason a training nomination applicable to his or her position shall be subjected to disciplinary action.

42. Annual Training Plan and Budget

(1) All training provided by the Authority shall be based on identified training needs of either the employee or the Authority as determined through performance

appraisal reports, training needs assessment, future staffing requirements and future work programmes.

(2) Commissioners or Department shall prepare departmental annual training plans and forward them to the Head of Division responsible for Human Resources for compiling.

(3) The training plan shall, include the following:
(a) title of the course;
(b) target group;
(c) number of staff;
(d) course provider;
(e) venue of the course;
(f) duration and cost involved; and
(g) source of funding, objective of the course and justification for the course.

43. Funding for Training

(1) The Authority may provide the lead in funding staff training and development by setting aside a certain percentage of the annual budget.

(2) The Authority shall facilitate training under special arrangement through the following ways:
(a) scholarship from external sponsors;
(b) scholarships from special projects;
(d) cost sharing sponsorship by the Authority and external donors; or
(e) private or self-sponsorship by the staff and reimbursable scholarship.

(2) Each scholarship shall be awarded according to selection criteria as stipulated in these Regulations.

(3) staff who qualifies for any of the sponsorship provided in these Regulations shall only proceed on study leave after approval has been granted.

44. Sponsorship

The Authority may support training needs in the following ways:
(a) leave with pay;
(b) leave with pay and all attendant expenses paid for by the Authority;
(c) leave with pay and partial expenses paid by the Authority;
(d) leave without pay and staff to pay all their expenses; or
(e) time-off during regular work-time.

45. External Scholarships

(1) The Authority shall solicit for scholarships from the government and various donor organizations for sponsorship of staff for training.

(2) Sources of external scholarship are:

(a) external Governments or agencies;
(b) international organizations; or
(c) international financial institutions.

46. Sponsorship for Long Term Training

(1) Sponsorship to long term training shall include both undergraduate and postgraduate studies.

(2) Staff requesting release to pursue relevant long-term full-time training under private sponsorship where such course is not in the training plan may be granted leave without pay for the duration of the course.

(3) Staff on approved long-term training fully sponsored by the Authority or any other sponsor shall be paid full salary.

(4) For the purpose of creating a favorable learning environment for staff attending local full-time long-term training under the Authority sponsorship, direct training cost payable to student may be determined by the Management from time to time

47. Salary Adjustment and Re-categorization

(1) Staff salary may be adjusted, if the qualifications attained are in accordance with the scheme of service, the adjustment shall be with effect from the date the employer receives the respective certificate.

(2) Staff acquiring relevant qualifications shall be promoted/re-categorized in accordance with scheme of service, re-categorization shall be with effect from the date the employer receives the respective certificate.

48. Progress Report

Staff attending long term training shall be required to submit progress reports, for staff fees for the following term or semester shall not be paid, if the report is not submitted unless there is a justifiable reason.

49. Performance Appraisal During Training

Training shall be regarded as part of work, training progress reports from the respective institutions shall be incorporated in the annual performance appraisal.

50. Repeating a Year

Staff on training shall be allowed to repeat a year only once and at own cost during the tenure of the course unless it is proved that it was on medical grounds.

51. Discontinuation from Studies

(1) Staff discontinued from training or who failed to acquire the desired qualification from long term training for academic reasons shall not be sponsored or released by the Authority to pursue long term training.

(2) Discontinuation from studies on disciplinary grounds shall be regarded as a gross misconduct warranting formal disciplinary proceedings.

52. Re-sitting Examinations

The Authority shall not incur any expenses related to the re-sitting of examinations except for professional examinations where the Authority may meet the cost only once per each part of the examination.

53. Training Committee

(1) There shall be a Training Committee, which shall make decisions on the utilization of training resources within the Authority subject to approval by the Commissioner General.

(2) The Training Committee shall be composed of the Deputy Commissioner General as Chairperson, Commissioners, Head of Departments, or any member co-opted by the Committee from time to time, the Assistant Commissioner for Human Resources shall be the Secretary of the Committee, the Committee shall meet at least once in every quarter.

(3) Divisions or Departments shall have a Divisional or Departmental Training Committee that shall consider all applications for training and recommend them to the Authority training committee.

54. Training Bond

(1) Any staff who is granted study leave by the Authority for a period longer than six (6) months shall be required to serve the Authority for a period equal to the study leave.

(2) Any staff who is paid stipend by the Authority for a period longer than six (6) months shall be required to serve the Authority for a period equal to the period paid for stipend.

(3) Where a staff is paid stipend for a period of three (3) years or more, he or she shall be bonded for three (3) years after completion of the course.

(4) Staff who are granted study leave with pay for a period longer than six (6) months shall sign a bond at the beginning of the study leave.

(5) In cases where bonds overlap, they shall run concurrently, if one leaves the Authority employment before, he or she completes the bond period, the recipient employer shall normally be required to pay for both bonds.

(6) Staff who train privately on programs with prior approval of the management may be reimbursed and shall be bonded at the time of reimbursement, the bonding period shall be calculated on the basis of the duration of the normal training programs.

(7) Staff who breaches the bond shall be required to reimburse the full or part of the costs as may be specified by the management.

55. Payment of Salary and Emoluments to Staff on Training

When a staff attends to a full-time training for a period longer than six (6) months on an external sponsorship or Authority sponsorship, such a staff may be granted leave with salary for the specific period of the program as per the prevailing public regulations.

56. Staff Succession Plan

(1) Succession plan is a vital strategic Human Resource Management tool that shall not be ignored by the Authority, it deals with projecting future changes by anticipating vacancies and then determining how to meet these challenges.

(2) Succession plan is a systematic process where managers identify, assess and develop their personnel to ensure that they are ready and capable of assuming key roles within the Authority, having this process in place is vital to the success of the Authority because the staff who is identified in the plan will eventually be responsible for ensuring that the Authority is able to tackle future challenges effectively.

(3) The high potential personnel shall be selected carefully and provided training and development including mentoring and coaching to give them the skills and the core competencies needed for the authority's future environment and goals.

(4) Succession plan creates an effective process for recognizing, developing and retaining top leadership talent that is ready to assume leadership roles in the authority when the need arises.

(5) Succession plan and development for the future leaders need to reflect the Authority's strategic goals, the following key issues shall be considered when implementing an effective succession plan:

(a) the support and backing of the authority's senior level management staff shall be obtained;

(b) the plan shall be part of the integrated Human Resource process that includes training, development and performance appraisal

(c) identifying the skills needed by the authority in the short, medium and long term;

(d) identifying critical positions for inclusion in the authority's succession planning programme;
(e) Identifying high-performers that are almost ready to step into the critical positions;
(f) analysing the workforce and identifying personnel who may be eligible for retirement within the next five (5) years;
(g) identifying the responsibilities, skills and competencies that will be needed by the replacements that shall be made;
(h) establishing a system for communicating succession planning information to heads of division, departments and units;
(i) establishing a systematic approach for identifying, nominating and selecting potential successors
(j) reviewing background information on successors such as their education, experience, skills, appraisals and prospects;
(k) determining the training and development requirements of potential successors;
(l) developing the skills of potential successors through work experiences, job rotation, projects and other challenging assignments;
(m) establishing a system for monitoring the progress of the personnel's development plan by senior management;
(n) establishing a system of feedback and encouragement to potential successors; and
(o) ensuring that the succession plan belongs to the organization and not the Human Resource Department or Unit so as to ensure that the plan receives the attention that it deserves.

CHAPTER V
DISCIPLINARY PROCEDURES

57. Disciplinary Measure

(1) Disciplinary Procedures under these Regulations are in accordance with applicable existing Labour and Civil Service laws.

(2) The primary aim of disciplinary measure is to regulate staff behaviour in order to ensure that they conduct themselves in an acceptable manner and ensure a fair and consistent approach to enforce standards of performance.

(3) Staff shall undergo counselling and verbal warnings as first step towards disciplinary action for misconducts which are considered not being serious offences under these Regulations.

(4) Disciplinary procedures under these Regulations are designed to cover minor offences (Summary proceedings) and major offences (Formal Proceedings) to Correct behaviour and encourage improvement.

58. Minor Offences

(1) Minor offences are minor acts that a staff is alleged to have committed, which are not of such gravity to warrant termination in the event of him or her being found guilty as specified in schedule 1 of these Regulations.

(2) If the supervisor finds that the staff is guilty of an offence and that the offence falls under minor offences shall:

(a) counsel the staff or issue a verbal warning; or

(b) if the conduct of the staff has not improved following counselling or verbal warning or if the misconduct requires stronger action than a verbal warning the supervisor shall:

(i) inform the staff in writing the reason for the action, and give the staff an opportunity to make representations, during this process, the staff may opt to have a representative;

(ii) after having considered any representation made, the supervisor will decide whether or not to give the staff a written warning, any warning shall be issued to the staff in accordance with a prescribed form and a copy to the Commissioner for Corporate Services;

(c) where the staff is aggrieved by a written warning, he or she may complete the prescribed form within five (5) working days after receipt of the decision and hand it to the next level of the management for decision.

(d) the next level of management considering the appeal shall consider the written representations contained on the prescribed form and may speak to the person concerned to obtain additional information but no formal hearing shall take place.

(e) the authority considering the appeal shall inform the staff on the outcome of the appeal within five (5) working days from the day of receipt of the appeal.

59. Preliminary Investigation

(1) There shall be form a Investigation Committee to establish the facts.

(2) Before any disciplinary action is taken, the Authority shall carry out a preliminary investigation to establish the facts relating to misconduct and whether or not the disciplinary action shall be taken against alleged staff.

(3) Major Offences are the disciplinary offences which, if committed by staff may warrant his or her termination as specified in schedule 2 of these Regulations.

(4) Formal proceedings for a disciplinary offence shall be instituted against a staff after he or she has been served with a charge or charges stating the nature of the offence which he or she is alleged to have committed.

(5) The charge or charges shall be prepared by the Head of Division responsible for Human Resource after receipt of the report on the preliminary investigation as may be deemed necessary.

(6) A disciplinary charge or charges shall be in the prescribed Notice Form and shall state briefly the nature of the offence which the accused staff is alleged to have committed together with statement of the allegations on which each charge is based in the language that the staff may reasonably understand.

(7) A charge or charges shall be accompanied by notice which shall be in the prescribed Notice Form and shall be addressed to the accused staff inviting him or her to state in writing, within such period as may be specified in the notice, the grounds upon which he or she relies to exculpate himself or herself.

(8) Formal charge instituted under these Regulations shall not be invalid by reasons of any irregularity in the charge or charges save that, such irregularity may be corrected. Where the charges served against staff are defective, the disciplinary authority shall be allowed to substitute them with the proper charges at any time before the date of hearing, provided that the defect so alleged is curable.

(9) Where a staff has been served with a charge and fails to make a representation in writing giving the ground upon which he or she relies to exculpate him or herself within the period specified in the notice accompanying the charge or charges, or make representations which in the opinion of the disciplinary authority does not amount to a complete defence of the offence of which the accused staff is charged the Disciplinary Authority shall appoint three or more members, to hold an inquiry into the charge or charges.

(10) Where the Disciplinary Authority is satisfied that the representations made by the accused staff amounts to a complete admission of the charge or charges against him or her, it shall not be necessary to hold any further inquiry or investigations in respect of such charge or charges, the inquiry committee shall proceed to record the findings of guilty.

(11) Where the Disciplinary Committee is of the opinion that it may be desirable for it to be assisted in the conduct of the inquiry by person(s) who may be more conversant with any professional or technical matter likely to arise in the course of proceedings, may request the disciplinary authority to assign other person(s) with the necessary qualifications or experience to assist the committee.

(12) Where a staff or a representative absconds to attend the hearing or frustrate or delays hearing, the Disciplinary Committee may determine the case *ex parte*.

60. Formation of Disciplinary Committee

(1) There shall be constituted a Disciplinary Committee to handle disciplinary cases.

(2) The Minister shall constitute a disciplinary committee for senior management level and the Commission General for the rest.

61. Inquiry Procedures

(1) The Disciplinary Committee shall adhere to the following procedures:

(a) staff shall be informed in writing of the time, date and place of hearing, the notice shall be given not less than five (5) days before hearing date;

(b) staff shall be informed of the right to choose another staff to represent him or her at the hearing to provide assistance, the staff providing assistance may be a trade union representative;

(c) The staff and the representative or representatives are entitled to be present at all times during the hearing and shall be informed of the facts of the case against the staff, an interpreter may be provided by the employer, if required;

(d) before any hearing, the Chairperson of the Disciplinary Committee shall ask the staff as to whether there is any member in the meeting whom he or she thinks his or her presence may occasion miscarriage of justice on his or her part, in such circumstance the staff shall justify, how the presence of the member may lead to failure of justice on his or her part, the Chairperson shall make decision on such preliminary objection raised by the staff.

(e) if the staff objects to the presence of the Chairperson, the Disciplinary Authority shall be informed and requested to appoint another person to Chair the proceedings.

(f) a management representative shall present the case in support of the allegations against the staff and the staff shall be given an opportunity to respond to the allegations, at the hearing parties shall have the right to call witnesses and question any witnesses called by the other party.

(g) the committee conducting the inquiry shall record the gist of the evidence adduced before it.

(h) after hearing of the evidence, the Disciplinary Committee shall make a decision based on a balance of probabilities as to whether the staff is guilty of the allegations or not, if the Committee is undecided, the staff shall be given a benefit of doubt.

(i) the decision of the Disciplinary Committee shall be made by way of vote of majority and in case of equal votes the Chairperson shall have a casting vote.

(j) the question of guiltiness and the penalty to be imposed may be considered separately and the staff or the representative is entitled to make representations with regard to an appropriate penalty to be imposed, mitigating and aggravating factors to be considered shall include the:

(i) seriousness of the offence and the likelihood of repetition.

(ii) staff's circumstances (including personal circumstances, length of service and previous disciplinary record).

(iii) nature of the staff's job (including health and safety considerations).

(iv) circumstances of the infringement itself.

(k) subject to the provision of these Regulations, a committee conducting an inquiry may regulate the procedure at the inquiry in the manner it may think fit without occasioning miscarriage of justice on either part;

(l) the inquiry shall be concluded within a period of sixty days from its commencement;
(m) the Authority shall bear the cost if the staff invites his or her fellow to represent him or her in disciplinary case;
(n) the staff shall not be victimized for any evidence adduced in favour of his or her fellow staff.

(2) Upon conclusion of the hearing, the committee shall forward the record of the proceedings together with its report on the hearing to the disciplinary authority for a decision.

(3) Upon receipt of the Disciplinary Committee report, the Disciplinary Authority shall decide on the appropriate decision:
(a) the Disciplinary Authority will inform the staff of the outcome of his or her decision within a period of thirty days, giving brief reasons for a decision through Commissioner for Corporate Service;
(b) staff may have the right to appeal against any disciplinary action, within fifteen (15) days from the receipt of the decision to the board for board appointees and to Employee Justice Chamber for the rest of the staff.

62. Qualifications of a Member of the Disciplinary Committee

A member of the Disciplinary Committee shall be:
(a) senior grade and above;
(b) grade higher than the grade held by the accused staff;
(c) having no interest of any nature to the dispute;
(d) provided that one of the members shall have sufficient knowledge, skills and competency in practice in the area related to the allegation.

63. Interdiction from Duty

(1) Staff may be interdicted from duty pending the outcome of the investigations and the decision of the disciplinary authority, the reasons for interdiction include, but not limited to the following:
(a) the staff's presence at work may obstruct the investigation; or
(b) the staff's on-going performance of duties may present a problem whilst the investigation takes place.

(2) The authority to interdict shall lie with the Commissioner General, Deputy Commissioner General and Commissioners for their respective staff.

64. Suspension from Duty on Criminal Proceedings

(1) Staff charged with criminal offence may be suspended on full remuneration pending a final determination by a court and any appeal there to on that charge.

(2) Where a staff has been convicted of a criminal offence the disciplinary authority may suspend that staff from performing his or her duties and functions pending consideration of the case on disciplinary ground under the provisions of these Regulations.

(3) Staff on interdiction or suspension shall be entitled to salary, housing allowance and medical assistance, the staff shall be required to report to the designated office once a week and may need prior written permission before travelling out of the duty station.

(4) If no disciplinary proceeding has been commenced in respect of disciplinary offence, but proceedings for criminal offence are instituted against the staff in any court of law, disciplinary proceedings shall not be commenced until after the conclusion of the criminal proceeding.

(5) If disciplinary proceeding has been commenced and during the pendency of such proceeding, criminal proceedings for the criminal offence arising from the same facts are instituted, the disciplinary proceeding shall be held and no further step shall be taken in respect of that disciplinary proceedings until after the conclusion of the criminal proceedings.

(6) Where disciplinary proceedings have been commenced and concluded against the accused staff and the staff is acquitted of the criminal charge on a legal technicality, the acquittal shall not be a bar to disciplinary proceedings against the accused staff on the same facts, disciplinary proceedings may be instituted against the staff and may be punished for disciplinary offence as if no criminal proceeding had been instituted against him or her.

65. Time Limits and Validity of Penalties

(1) Disciplinary action shall be taken expeditiously after it has been discovered that an offence has been committed and the action taken shall be consistent with past record of the offender, except for offences falling under Schedule 2 of these Regulations.

(2) Penalties shall be valid for a specific period as summarized in the following schedule**.**

Penalty	**Period of validity**
Verbal warning	Three Months (3)
Written warning	Six Months (6)
Final written warning	Twelve Months (12)
Comprehensive final written warning	Twelve Months (12)

Suspension for thirty (30) days without pay and final written warning with consent of the staff.	Twelve Months (12)
Deduction of salary	Twelve Months (12)
Demotion	Twelve Months (12)

CHAPTER VI
WORK ATTENDANCE

66. Hours of Work

(1) The official working week of the Authority consists of five (5) working days from Monday to Friday. Commissioners are responsible for ensuring that the regular hours of working are adhered to.

(2) The official working hours for all staffs at the Authority is from 08:00 A.M. to 5:00 P.M. from Monday to Friday excluding Public Holidays, with a one (1) hour lunch break from 1:00 P.M. to 2:00 P.M. in such circumstances the lunch breaks shall be spread to allow continuous coverage and services to internal and external customers.

67. Variation of working hours

(1) Individual working hours may vary according to the job function but not falling below eight (8) hours per working day.

(2) Where a specific task demands, staff shall be called upon to work additional hours or over the weekends. In such cases, overtime payment or off duty shall be made as stipulated in the Authority terms of Service.

(3) Staff shall arrange to take some compensatory time off in lieu of extra time worked, this time off shall be recommended to the Commissioner General through the Head of Division responsible for Human Resources in writing as forwarded by the section head and shall only be granted at the convenience of the Authority.

(4) Approved time off shall be forwarded to the Commissioner for Corporate Service.

(5) Staff who work in busy offices and are paid extraneous allowances (as stipulated in this Regulations) shall be required from time to time to work longer hours as need arises, all staff shall observe punctuality at all times.

68. Attendance

(1) A record of attendance shall be maintained in every work station of the Authority.

(2) It is the responsibility of every staff to be at his or her place of work by the scheduled starting time.

69. Staff shall be required to remain and work continuously at their work places during the prescribed working hours unless permitted by the supervisors.

70. In the event that staff is not able to be at his or her place of work on time, he or she shall notify the respective supervisor in good time, perpetual tendency of lateness without valid reasons shall result in disciplinary action.

71. Staff may be absent from work as a result of illness, injury or personal genuine reasons and approved as leave taken, in such cases, staffs are expected to give their supervisors sufficient notice before the scheduled starting time, this notification is necessary to facilitate proper arrangements for work in the absence of the staff.

72. When there is need for a staff to be absent from work, he or she shall request in writing by filling application for short leave form and obtain approval in advance from the immediate supervisor.

73. Excessive absenteeism where staff constantly fails to report to work without permission or excessive lateness adversely affects productivity and over-burdens other staff, who shall cover for the absentee, these are grounds for disciplinary action, up to and including dismissal.

CHAPTER VII
LEAVE

74. Annual Leave

(1) Leave is a vital human resource management mechanism that ensures the promotion of a healthy and productive workforce life and organizational development.

(2) Annual leave shall be taken within the leave cycle for the purpose of this regulation "leave cycle" is a period of one year calculated from the date of appointment, provided that a newly appointed staff shall be required to complete a minimum of eight (8) months before being granted annual leave.

(3) An employee is entitled to annual leave with full pay as follows:

a. After continuous service of one year or more but less than three years, twenty-one working days per year;
b. After continuous service of three years or more but less than fifteen years, twenty-five working days per year; and
c. After continuous service of fifteen years or more, thirty working days per year

(4) Annual leave for a newly appointed staff working less than six months after employment shall be calculated on pro-rata basis.

(5) Annual leave entitlement applies to all staff other than casual and temporary staffs whose leave entitlement is as stipulated in their contract agreement the staff become eligible for leave after completion of probation period (three months) with the Authority.

(6) staff may take his or her annual leave at such time or times as agreed with his or her supervisor, provided that the Authority shall not unreasonably refuse staff request for annual leave.

(7) Leave periods shall be scheduled in advance and shall be approved by the staff's Head of Department at the beginning of every year.

(8) Staff are encouraged to take all their annual leave due within the stipulated leave cycle. Leave not taken within the leave cycle shall accumulate from year to year, once leave is accumulated, it shall be taken at a convenient time as approved by the Head of Division or Department.

(9) Where a staff has accumulated two years of untaken annual leave, he or she may, by written agreement, with the Authority, accept financial compensation for half of the untaken annual leave entitlement.

(10) The Authority shall pay a staff for any annual leave not taken by or paid out to the staff at the termination of employment, irrespective of the cause of such termination or to the Administrator of the Estate in the event of staff death.

(11) The Authority shall not require or permit staff to work for the Authority during any period of leave, provided that the Authority reserves the right to recall staff from leave, if this is deemed necessary.

(12) In the event a staff is recalled from leave, the recalled staff shall take the remaining portion of the leave in the subsequent leave cycle or at a date convenient to both parties, travel expenses will be refunded to the staff upon submission of documentary evidence.

(13) Staff proceeding on annual leave may, when he or she avails at least one-half of his or her annual leave, be paid his or her salary in advance for the month in which the staff proceeds on leave three days before departure from his or her station of work, this arrangement does not constitute an advance of salary.

75. Application for Annual Leave

(1) Request for leave shall be made on the prescribed leave application form, seven (7) days prior to the date requested and signed by the staff's supervisor.

(2) The form shall be sent to the Department of Human Resources for verification of actual entitlement against the number of days requested.

(3) staff shall not proceed on leave without the prior approval of the relevant authority.

71. Sick Leave

(1) If it is realized that the staff may be unable to work due to illness or injury, the Authority shall grant sick leave, the staff shall notify his or her supervisor of the need to take sick leave, and anticipated duration of such sick leave, as soon as the staff becomes aware of his or her incapacity to work.

(2) The Authority may require the staff to provide a medical certificate from a government hospital or private clinic, verifying the staff incapacity arising from illness or injury and the anticipated duration of staff incapacity to work.

(3) Staff is entitled to a maximum of up to twelve (12) sick-off days on full pay per year of continuous service, sick leave is not cumulative and shall not be carried over to the next year.

(4) Unsupported sick leave shall be recovered from the staff's leave entitlement or salary.

(5) The Management may refuse to grant sick leave if the sickness is self-inflicted or due to gross negligence on the staff's part.

(6) In the case of sick leave and or convalescent leave rendered necessary by the staff own neglect or misconduct, his or her salary may not be paid to him or her for the whole period of absence from duty.

72. Illness while on Leave

(1) In the event of illness occurring while staff is on annual leave or any other form of leave, the period of absence shall continue to be regarded as the original leave for the full period of the illness, but if the illness extends beyond the expiry of leave being taken, sick leave shall be granted, if necessary, from the end of such leave period.

73. Unpaid Leave of Absence

(1) Staff is entitled, on request, to a period of unpaid leave for such reasons as:
   a. observing or attending to religious or cultural ceremonies or practices;
   b. caring for a family member who is suffering from a serious illness or injury and who depends on the staff for essential care;
   c. undertaking study relevant to the work performed by the staff for Authority; and;
   d. accompanying staff's spouse, in circumstances where the staff's spouse is required to move outside South Sudan for work.

(2) Unpaid leave requested by staff under these Regulations shall:
   a. not be unreasonably refused by the management;

b. be subject to such terms and conditions as are agreed in writing between the Authority and the staff.

(3) All applications for such unpaid leave shall be sent to the Commissioner for Corporate Service with recommendations from the Head of Division or Department.

(4) All such applications shall confirm that all leave due to the staff has been utilized, unpaid leave of absence shall be subject to approval by the Commissioner General.

74. Maternity Leave

(1) A female staff shall be entitled to a full paid maternity leave of ninety (90) days and at least six (6) months from the date of return from maternity leave for breastfeeding while working for half day as stipulated in sub-section 7 below.

(2) The maternity leave is inclusive of Saturdays, Sundays and Public Holidays. For the purpose of this Section, a medical certificate may be issued by an approved medical doctor or a midwife, the maternity leave shall be exclusive of annual leave for the year in which the maternity leave is taken

(2) A female staff wishing to extend maternity leave for purposes of caring for her child, may be granted leave without pay for a period not exceeding one (1) year.

(3) Staff who intends to take maternity leave in accordance with these Regulations shall give at least fourteen (14) days' notice of her intention to proceed on maternity leave, the application for maternity leave shall be supported by a medical certificate indicating the date on which maternity leave shall commence.

(4) A period of maternity leave taken before the anticipated date of childbirth shall be extended by the time, if any, between the anticipated and actual date of childbirth, and the period of compulsory maternity leave following childbirth shall not be reduced on that account

~~(4) The maternity leave is inclusive of Saturdays, Sundays and Public Holidays. For the purpose of this Section, a medical certificate may be issued by an approved medical doctor or a midwife, the maternity leave shall be exclusive of annual leave for the year in which the maternity leave is taken.~~

(5) A staff, who has a miscarriage or a stillborn child, shall be entitled to leave for six (6) weeks after miscarriage or stillbirth.

(6) Where staff requires more time before or after childbirth over and above the stipulated entitlement, she may apply for annual or unpaid leave up to a maximum of one (1) month. A female staff shall not forfeit her annual leave on account of taking maternity leave.

(7) Staff who returns to work after maternity leave and is nursing her child shall be entitled to a period of at least six months from the date of her return to the following:

(a) two breaks of thirty (30) minutes each during working day;
(b) a reduction of sixty (60) minutes from her daily hours of work; or
(c) provision of a clean space for baby-seaters in workplace for lactating mothers to breastfeed their babies regularly.

(8) The entitlement to nursing breaks provided by subsection ~~319 of Labor Act~~ 7 above is in addition to any other rest periods to which an employee may be entitled; and shall be considered as working time with pay accordingly.

(9) Staff shall not work within six (6) weeks of the birth of her child, unless a medical practitioner certifies that she is fit to do so.

(10) The Authority shall not require or permit a staff who is pregnant or nursing a child to perform work that is hazardous to her health or the health of a child.

(11) Following a period of maternity leave taken in accordance with these Regulations, a staff shall have the right to return to the position that she held immediately before the maternity leave.

(12) Within the premises, ~~of~~ the Authority may plan to have nursing home for breastfeeding mothers.

75. Paternity Leave

(1) A male staff shall be granted paternity leave with full ~~salary~~ pay for a maximum of two (2) weeks ~~within a year~~ provided that the staff submits a proof that his wife has delivered, the paternity leave shall be taken:

(a) within three (3) days after birth of his or her child or
(b) immediately following miscarriage by his wife.

(2) Staff with more than one spouse shall only be entitled to a maximum of two (2) weeks paternity leave annually.

(3) A male staff with more than one (1) spouse, ~~he~~ shall be entitled to paternity leave only in respect of the wife registered in the employment records and such leave shall be taken not more than once in a year.

76. Study Leave

(1) The Authority shall grant study leave to staff pursuing additional academic or professional qualifications.

(2) Study leaves not exceeding three (3) years may be granted to staff who has completed at least two (2) years in service with the Authority provided that he or she produces documentary evidence from authentic sponsor and that the programme is in the training plan.

(3) The study leave request shall be submitted to the Commissioner for Corporate Service through the Head of Division or Department and shall be approved by the Commissioner General upon being satisfied with the application.

(4) The approval and duration of the study leave shall be dependent on the relevance of the course to the Authority resource availability and duration of the course in accordance with sub-regulation (2) of this regulation.

(5) Staff on fixed term contract and those under probation shall not be entitled to long term study leave.

(6) The Authority shall follow the laid down procedure for processing study leave requests by staff bearing in mind the needs of the Authority and shall pay the staff on study leave 100% of their basic salary.

76. Staff on study leave shall not be entitled to annual leave or allowances applicable to day-to-day work.

77. A staff whose request for study leave has not been approved may opt to apply for unpaid leave of absence to pursue his or her course, the study leave shall be limited to the duration of the course.

77. Compassionate Leave

(1) On compassionate grounds such as serious illness, injury or death of an immediate member of the family (father, mother, sibling, spouse and children), compassionate leave may be granted for up to fourteen (14) days full pay in a year.

(2) The affected staff shall apply for compassionate leave to the Commissioner for Corporate Service through his or her supervisor.

(3) Untaken compassionate leave entitlement shall not accumulate from year to year.

78. Leave for Vocational and Union Training or Function

(1) The Authority shall grant leave of absence with full pay to staff who is a member of a workers Union to attend training, workshop, seminar or function sponsored by the union internal or external bodies.

(2) The Union shall furnish the management with a list of its officials who are to attend such training or function in appropriate time.

79. Public Holidays

(1) The Authority shall observe all official public holidays as recognized by the Government.

(2) Staff is entitled to paid leave on such days as are declared by the Government to be public holidays.

(2) If paid holiday falls within an employee's leave period, the holiday shall not be counted as a leave day.

(4) Staff who is required to work on a public holiday shall be entitled to:

(a) two (2) times that staff regular hourly rate for all time worked on the public holiday; or

(b) one day paid leave by way of compensation.

80. Sabbatical leave

(1) In order to broaden the experience of staff and increase their potential value to the Authority, staff may be granted sabbatical leave, provided that staff on fixed term contract shall not be entitled to sabbatical leave.

(2) The sabbatical leave may be granted after five (5) years of continuous service with the Authority.

(3) Sabbatical leave may be granted for a minimum of six (6) months and maximum of one (1) year with full pay, provided that the Authority shall not meet the travel expenses and subsistence allowance related to sabbatical leave.

(4) staff on sabbatical leave shall continue to enjoy medical benefits while in South Sudan.

(5) staff who has been granted sabbatical leave shall not be considered for another sabbatical leave until the expiry of five (5) years.

(6) The sabbatical leave may be approved at the discretion of the Commissioner General.

81. Leave Compensation on Termination of Contract

staff who has not availed himself or herself for the annual leave due for the year in which his or her employment ceases shall be entitled to payment of cash in lieu of annual leave at the end of his or her contract.

82. Special Leave

The Commissioner General may at his or her discretion grant special leave for any purpose not covered by the categories of leave set out in this Regulations, in granting such leave, the Commissioner General shall take into account the frequency of such absences by the staff and the effect on a staff work.

CHAPTER VIII
ATTACHMENT AND INTERSHIP

83. Attachment or Internship

(1) For the purposes of mentoring, coaching and imparting skills, attachment and internship shall be allowed for short periods of ~~3~~ three (3) months.

(2) Interns shall not work in sensitive areas of the Authority.

(3) The Authority has provided a clear framework that guides and gives direction, on the management of all internship or attachment programs and training within the Authority as follows:

(a) the internship programme shall be implemented after approval by the Commissioner General.

(b) Commissioners or Department shall identify strategic areas in which the internship can be implemented

(c) all interns shall upon being accepted as interns be made aware of their rights and obligation

(d) all supervisors shall mentor interns throughout their learning period.

(4) Internship or Attachment may attract some monetary emolument to support the intern to travel to and from the station he or she is attached to, the amount of which shall be determined by Commissioner General from time to time.

84. Acceptance of Interns

(1) Applications for attachment or internship shall be submitted to the Commissioner for Corporate Service.

(2) Once the Authority receives applications or requests for attachments, the departments shall be required to declare the number of interns they can take up at any given time.

85. Terms of Internship Service

(1) The period of internship shall not exceed three (3) months in any one year from the time of entry.

(2) All persons performing internship shall be expected to have accident insurance cover at their own cost.

(3) Interns shall be expected to adhere to the rules and regulations, set out in these Regulations.

86. Attendance to in-house Training Programs

During their period of engagement, interns may attend any Authority in-house trainings provided for all staff members.

87. Monitoring and Evaluation

(1) Interns shall be attached to a mentor who shall monitor their performance and provide the necessary assistance for better learning.

(2) On completion of the internship period, a performance evaluation by the head of unit is to be conducted to provide constructive feedback from both parties.

(3) The intern shall prepare an end of internship report which shall be discussed with the relevant Head of Department during an exit interview.

88. Period and Termination

(1) Internship shall commence on the day the intern starts and last for three (3) months.

(2) During the three months of internship, either party hereto may terminate this agreement by giving one-week written notice to this effect.

CHAPTER IX
STAFF MEDICAL SCHEME

96. Medical Insurance Cover

(1) The Authority is committed to the promotion and maintenance of the physical and mental health of its staff and the provision of adequate risk cover for the staff and the work environment. In pursuance of this objective, the Authority shall ensure that every staff works under satisfactory, safe and healthy conditions.

(2) The Authority shall provide all eligible staffs with a medical insurance cover as per the Authority terms of service.

97. Eligibility

(1) The Authority medical insurance cover shall apply to all staff and shall also cover:
(a) one (1) legal spouse;
(b) children of staff (including legally adopted children) who are dependent on the staff support, and are (18) years old and below, shall be included in the Medical Scheme;
(c) children in the above category who are eighteen (18) years but below twenty-five (25) years, undergoing an approved full-time course of higher learning or other approved education shall be included in the medical scheme with the approval of the board; and

(d) any other children of staff may be accepted in the scheme on payment of capitation fee on a monthly basis at the discretion of the Management.

(2) Medical Scheme shall cover staff, one wife and not more than six (6) children.

(3) In exceptional circumstances, the Commissioner General may extend the maximum age, subject to the Board's approval

98. Ineligible Persons

The Medical Benefits Scheme shall not cover and no benefits shall be paid to:

(a) the divorced spouse of staff;
(b) staff who is on casual or temporary terms, his or her spouse or dependents;
(c) staff or his or her dependents where the illness to eligible person is caused by his or her own neglect, misconduct, intoxication, impropriety or where the illness is as a result of dangerous sports.

99. Services under the Medical Scheme

The Scheme shall provide medical attention in respect of various services which are indicated in the terms and conditions of the medical scheme.

100. Medical Transport Expenses

The Authority shall meet the expenses of transport in connection with medical attention and hospital treatment as approved in the medical scheme.

101. Medical and Hospital Treatment Abroad

(1) A staff or an eligible member of his or her family shall not be considered for medical treatment abroad except on recommendation of an approved medical practitioner, Medical Commission and approved by the Commissioner General.

(2) The Authority to incur expenditure for medical treatment outside South Sudan shall be subject to approval by the Board.

(3) Where staff who is outside South Sudan either on Authority business or for the Authority-sponsored course falls ill and receives medical attention or treatment outside South Sudan, the Authority shall reimburse such costs as provided for in the medical scheme upon production of original receipts from a licensed medical practitioner in that country.

102. In - patient Expenses

The Authority Medical Scheme shall cover the following In-patient expenses:

(a) Consultation fees and evacuation costs directly leading to hospitalization;
(b) Hospital admission costs;

(c) ICU/HDU charges, physiotherapy, radiotherapy and chemotherapy;
(d) Theatre charges, costs of surgical appliances and toiletries;
(e) Road and air ambulance for emergency evacuations;
(f) Specialist Doctors' fees;
(g) Medical investigations and pathology such as X-rays, scans, assorted laboratory tests;
(h) In-patient ophthalmological (eye), ear, dental treatment and management arising out of sickness or injuries.
(i) Prescribed medications, dressings and costs of surgical appliances and toiletries.
(j) Day-care surgeries and procedures subject to pre-authorization;
(k) Treatment for pre-existing cases, chronic conditions and HIV/AIDS management plus related conditions, the chronic ailments include diabetes, hypertension, asthma, renal failure, osteoarthritis, rheumatoid arthritis, spondylitis, liver diseases, eczema among others.
(l) Congenital conditions covered within the pre-existing or chronic conditions.
(m) Psycho-effective illnesses e.g. mania or depression;
(n) Laser surgery treatment and cataract surgery;
(o) Family planning and infertility treatment.

103. Excluded Medical Cases

The following cases are excluded in the medical scheme:

(a) General or routine health check-ups.
(b) Intentional self-injury, chronic drunkenness, drug and substance abuse.
(c) Cosmetic surgery and beauty treatment unless necessitated by accidental injuries.
(d) Treatment other than by registered medical practitioners.
(e) Amount (rebate) recoverable from health insurance schemes.
(f) Treatment by chiropractors, Acupuncturist and Herbalists.
(g) Injuries as a result of active participation in riots and strikes.

104. Insurance Cover Limits

If the Authority outsources medical scheme services for its staff, the in-patient and out-patient limits shall be as prescribed from time to time in such Medical Scheme.

105. Funeral Assistance

(1) Upon death of a staff excluding temporary or daily paid staff, the Authority shall provide burial assistance to cover:

(a) body preparation expenses;
(b) coffin, shroud, grave digging;
(c) transportation of the body to the place of burial;

(d) transportation of a surviving spouse and children to and from the place of burial; and

(e) Condolence at the amount to be determined by management.

(2) Upon death of staff, spouse or child the Authority shall provide burial assistance specified for the staff and condolence at the amount to be determined by the Management.

105. Occupational Health and Safety

(1) Authority shall ensure safe and healthy working environment for staff and visitors to the Authority premises, the Authority shall provide and maintain the following:

(a) control the health and safety risks arising from work activities.
(b) a safe place of work with safe means of entry and exit.
(c) a safe plant, equipment and systems of work.
(d) necessary information, instruction, training and supervision to protect safety and health at work.

(2) Authority shall have a regular health and safety consultation with staff and their representatives and, where necessary with contractors and suppliers of safety equipment and services, to ensure that occupational health and safety management is of the highest standard.

(3) The Authority shall strive to avail a comprehensive range of programs to staff to support their health, safety and wellbeing and the return to work of ill or injured staff, including ensuring training and instruction is provided to staff commensurate with their roles and responsibilities to enable them to comply with these Regulations.

106. Reporting Unsafe Conditions or Practices

(1) Staffs are expected to continually be on the lookout for unsafe working practices, when a staff observes an unsafe condition, he or she shall warn others, and report that condition to his or her supervisor immediately.

(2) If a staff has a question regarding the safety of his or her workplace and practices, he or she shall ask his or her supervisor for clarification.

(3) When staff observes a colleague with an unsafe practice, he or she is expected to mention this to the colleague and report to his or her supervisor, safety at work shall be a team effort.

107. Using Safety Equipment

(1) The Authority shall provide its staffs with appropriate safety equipment and devises at the workplace.

(2) Staff are required to use the equipment or device provided in the manner designated as proper and safe by the manufacturer, failure to properly use safety equipment may lead to disciplinary action, up to and including termination.

(3) If a staff requires safety equipment that has not been provided, he or she shall contact his or her supervisor before performing the job for which he or she needs the safety equipment.

108. Reporting an Accident or Injury

(1) Staff are required to report an injury, accident or safety hazard immediately to their supervisor, who shall in turn report to the Commissioner for Corporate Service.

(2) The Human Resource department shall report an accident or injury to the insurance company within twenty-four (24) hours of the occurrence of the accident to ensure that insurance and statutory concerns are adequately complied and dealt with.

(3) Serious injuries shall be reported on the prescribed injury or accident report form available in the office of the Department of Human Resources and Administration.

(4) In the case of an accident that results in injury, regardless of the degree of injury, staff shall notify their supervisor, failure to report an injury could affect a subsequent workman's injury benefits claim.

109. Smoking at the Workplace

(1) The Authority shall provide a smoke-free environment for its staff and customers smoking of any kind is prohibited inside the office and within work areas unless in a designated area.

(2) Supervisors shall inform all those working under them of this smoke-free policy and take necessary action or report to higher authority any violation of this Regulations.

(3) The Authority shall designate a smoking zone.

110. Violence and Weapons

(1) The Authority believes in open, friendly and supportive working environment for all staff, violence or threats are prohibited.

(2) Staff are strictly prohibited from bringing any weapons, including knives, power saws, axes, and guns or any other offensive weapons or objects to the work areas or office.

(3) Neither threats of violence nor fighting shall be tolerated, staff are expected to immediately report to their supervisor any violation of these Regulations.

(4) Any staff found threatening another staff, fighting and or carrying weapons to the office shall be subjected to disciplinary action.

111. Substance Abuse

(1) the Authority shall provide a safe and productive workplace for its staffs. In keeping with this commitment, rules regarding alcohol and drug abuse shall be established for all staff.

(2) The following rules shall apply to all staff during working hours, while they are on the Authority premises or elsewhere on the Authority's business are prohibited from:

(a) The manufacture, distribution, possession, purchase or sale of controlled substances of abuse on the Authority premises.
(b) Being under the influence of illegal drugs, alcohol or substances of abuse on the Authority premises.

112. HIV / AIDS

(1) Government shall ensure the necessary policies for managing HIV/AIDS in the work place are developed and implemented, this shall include:
(a) counselling services;
(b) maintenance of confidentiality about civil servants who are infected or affected by HIV/AIDS.
(c) provision of care and support;
(d) special care and support for pregnant mothers infected with HIV/AIDs; and
(e) provision of ARV treatment.

(2) The Authority shall maintain a safe and healthy work environment for all staffs including those with HIV infection and AIDS.

(3) Staff living with or affected by HIV infection and AIDS shall be treated with compassion and understanding.

(4) Recognizing the need for all staff to be accurately informed about HIV infection and AIDS, the Authority shall make information and educational materials and seminars on HIV/AIDS available, staff who wish to obtain information and materials shall contact the Human Resource Unit or their respective Departmental Head.

(5) All staff are expected to cultivate good working relationships with any staff who has HIV infection or AIDS, staff who refuse to work with, withhold services from, harass or otherwise discriminate against with HIV infection or AIDS shall be subject to disciplinary procedures.

(6) Information about staff medical condition is private and shall be treated in a confidential manner. In most cases, only managers directly involved in providing reasonable accommodation or arranging benefits may need to know staff's diagnosis. Others, who may acquire such information, even if obtained personally from the individual, shall respect the confidentiality of the medical information.

(7) The Authority shall deal humanely and appropriately with staff who are HIV positive or with AIDS by establishing a supportive workplace environment.

113. Fire Emergencies

(1) Fire is an ever-present hazard, especially where electrical equipment is concerned, every staff is required to familiarize him or herself with the fire extinguisher locations and the buildings emergency exits at his or her office premises.

(2) Fire extinguisher locations, the buildings emergency exits and fire assembly point locations shall be pointed out to all staff during their orientation, every staff shall know where the fire extinguishers are located and how to operate them effectively, this information shall be reviewed periodically.

114. Occupational Safety

(1) The Authority shall be guided by the laws relating to occupational health and safety as established by the competent authorities.

(2) The goal of the Authority in occupational health and safety is to proactively take preventive measures to assure staff and other stakeholders of a safe and good working environment, free of accidents, injuries or ill-health.

115. Infectious and Life-Threatening Diseases

(1) The Authority shall respond to staff with infectious and life-threatening illness with support, compassion and understanding by giving the same consideration as staff with any other illness.

(2) A staff who has a life-threatening illness shall continue working as long as he or she may perform the essential functions of his or her job and possess no health risk to others.

(3) Staff who has infectious disease like Meningitis, Ebola, Tuberculosis, Conjunctivitis, Cholera and any other declared as infectious shall only be allowed to return to work when a doctor certifies that he or she can return to work.

116. Insurance and Workman's Compensation

The Authority shall endeavor to facilitate health insurance and workman's compensation insurance for its staff with relevant agencies.

CHAPTER X
COMPLAINT AND GRIEVANCE PROCEDURES

117. Staffs Rights and Responsibilities

(1) The Authority shall avail, sensitize and create awareness on staffs' rights, responsibilities and Authority's policies, regulations and procedures.

(2) It is the responsibility of each staff to learn, understand and consistently observe the rules, procedures and standards of conduct established by the Authority.

(3) All staff are eligible to access the provisions of the grievance procedures.

(4) Filing of a grievance shall not jeopardize the staff's position, opportunities for advancement or salary increases.

(5) Staff may not be forced by management or any other staff into not proceeding with a grievance or not appearing as a witness at an inquiry.

(6) All staff, (including the grievant) shall cooperate at all stages in an investigation of a grievance or misconduct, this cooperation shall include, but not be limited to, appearing to answer questions and presenting truthful information, failure to present truthful information may result in disciplinary action.

(7) If any party involved is dissatisfied with the outcome of any stage in a disciplinary or grievance inquiry, movement of the inquiry to the next stage may be requested.

(8) The Authority recognizes the meaningful value and importance of full discussion in resolving misunderstandings and preserving good relations between management and staff.

(9) Shall a condition exist that a staff feels unsatisfactory, he or she shall bring it to the attention of the appropriate person in the proper manner.

(10) The Authority is to provide conducive working environment where staff realize their full potential.

(11) The Authority shall ensure that staff's performance is not hampered due to unresolved differences.

(13) The Authority shall provide aggrieved staff with a mechanism through which their grievances are addressed.

118. Resolving Complaints and Grievances

(1) Staff are required to bring complaints to the attention of their immediate supervisor in the first instance, the supervisor is required to respond to the complaint within five (5) working days. A resolution is encouraged at this stage through discussion and counselling.

(2) If the staff and supervisor's discussion does not settle the matter, the staff next step of action is to submit to the supervisor a written grievance and the following need to be adhered to:

(a) the supervisor is required to respond in writing within three (3) working days. Copies of this communication shall be sent to the Commissioner for Corporate Service;

(b) a resolution is encouraged at this stage through discussion and the counselling of all parties concerned. In case the grievance is not resolved or where the supervisor is the offender, the matter may be referred to the next management level;

(c) at this stage, the officer appealed to shall convene a meeting to review the grievance and the complainant's supervisor's response, his or her hearing shall be conducted in privacy with no interruptions;

(d) the complainant may choose to be accompanied by a colleague or any other person who shall be staff, minutes of the grievance meeting shall be recorded and be held in confidence.

(3) Both the Respondent and the Aggrieved party shall provide evidence and the allegations be clearly stated, there should be adequate time for enquiry and cross-examinations to and by both parties.

(4) If the grievance is not resolved at this stage, the supervisor handling the matter shall have to forward it to the respective disciplinary committee.

(5) Having received the grievance, the disciplinary committee shall hear the complaint and make recommendations in writing within seven (7) working days to the Commissioner General for decision or further action.

(6) If the staff is still not satisfied with the recommendations by the disciplinary committee and decision by the Commissioner General, he or she may further appeal to the Board in writing, clearly stating reasons for his or her dissatisfaction, the Board shall expeditiously determine the case and bring the matter to a conclusion.

PERSONAL RECORDS, PERFORMANCE MANAGEMENT

119. Personal Records

The Authority shall protect and safeguard the privacy of staff's personal information to the fullest extent possible, consistent with service and legal practices.

120. Registry Records

(1) The Authority shall collect, maintain and use staff personal information in such a manner as to ascertain its accuracy and relevancy, preserve the confidentiality of the information, serve business needs, and to ensure that they conform to applicable legal requirements.

(2) To preserve privacy of the records, only those who have a legitimate "need to know" may have access to staff information, the disclosure of such data is governed by these Regulations.

(3) Personal files shall be reviewed to ensure that only pertinent and necessary data is kept, the files for each staff shall be retained in accordance with the established records retention policy.

(4) The personal files shall contain only documents that pertain to and are officially used to record qualifications for employment, promotion, benefits compensation, termination or disciplinary action such as:

(a) employment applications and personal history forms;
(b) curriculum vitae or resumes;
(c) copies of certificates, both academic and professional;
(d) copy of identity card, Authority card, driving license and passport;
(e) letters of employment, acceptance letters and testimonials or referees;
(f) salary information;
(g) documentation of compensation changes, employment, job titles, seniority, birth date, authorization for pay deductions;
(h) termination or separation information;
(i) attendance records;
(j) fringe benefits information;
(k) retirement records;
(l) performance appraisal or evaluations;
(m) education information from colleges, technical schools and universities;
(n) leave applications and approvals records;
(o) promotion records;
(p) disciplinary records;

(5) All personnel data shall be electronically stored.

121. Personal Files

(1) The Department responsible for Human Resources shall maintain both open and confidential files for each staff under safe environment.

(2) The Departments and State Revenue offices shall also maintain separate files for each staff where records such as leave forms and personal data shall be kept.

(3) The Departmental or State Revenue office open personal file shall accompany the staff in the event of a transfer to a different Department or State Revenue office within the Authority.

(4) When staff leaves the Authority, the personal files shall be removed from active files six (6) months after cessation of employment and be held for a period of ten (10) years before it is destroyed.

(5) All confidential files for Board Appointees shall be kept under lock and key in the office of the Commissioner General.

(6) Staff shall not handle his or her personal file, in case of any issue regarding a personal file, the concerned staff shall contact the head of Department responsible for Human Resources for assistance.

(7) In the case of files dealing with potential or actual litigation claims, access to personal file by a staff shall be given to the staff in the presence of the legal officer, the staff shall be permitted to make notes concerning any such information.

(8) Medical records shall be kept in staff personal confidential file, the records shall be retained for the duration of employment plus ten (10) years, this includes records of occupational injury and all types of treatment and testing by the Authority.

(9) Medical records to which staff may be given access include reports of physical examinations and laboratory tests made by physicians acting for the Authority, the staff may also review physician's statements concerning leaves of absence or work restrictions.

122. Reporting Changes in Personal Records

(1) Each staff is required to report any change of his or her records kept in his or her personal file such as name, address, telephone number, marital status and number of dependents as well as any academic or professional qualification acquired such as degrees or certificates to their supervisor and the Human Resource Department within thirty (30) days of such a change.

(2) The Authority is not responsible for non-receipt of any official communication sent to the staff, if the staff has failed to file a change of address notice with the head of Department responsible for Human Resources.

(3) In case staff need to change the number of dependants, it is necessary for the employee to notify the Commissioner for Corporate Service in writing as soon as possible, attaching the necessary documents to support the change and to receive acknowledgment from the same office.

123. Performance Management

(1) Performance management is an integral part of the human resource management system and ensures that Authority deliver on its objectives.

(2) Performance management is a process by which an organization assesses whether it is delivering the right services to the right people, at the right time and cost in accordance with its mission and objectives.

(3) Authority is committed to achieving its objectives in performance by ensuring a performance management system is in place to yield better results from teams and individual staff members. This entail setting mutually agreed targets between the supervisor and the staff, based on jointly agreed goals, standards and competencies or skills requirements.

(4) Supervisors and managers are responsible for managing the performance of the staff.

(5) At the beginning of every financial year, the Board shall give the direction to the Management to provide for the corporate objectives that shall be achieved at the end of the year. The direction shall be cascaded down to the heads of departments, section heads and finally to the individual staff.

(6) Using performance management system, the Authority shall ensure that:

(a) the work performed by staff accomplishes the objectives of the Authority;
(b) staff have a clear understanding of the quality and quantity of work output expected from them;
(c) staff receive on-going information about how effectively they are performing relative to expectation;
(d) a wards and salary increase based on staff performance are provided accordingly;
(e) opportunities for staff development are identified; and
(f) employee performance that does not meet expectations is addressed.

(6) The Authority shall ensure that the staff performance management process is an important way to improve the effectiveness of the Authority through the best performing staff.

124. Annual Performance Appraisal

(1) Staff performance appraisal shall be carried out the whole year round with emphasis on feedback as the backbone of performance improvement.

(2) A formal staff performance appraisal is carried out annually. The appraisal shall be documented on a standard form defined by the Authority, the annual performance appraisal shall be used to report overall staff performance.

(3) Prior to discussing a completed performance appraisal i.e. an appraisal containing ratings and descriptions of actual performance, with staff, shall avail him or herself before an appraisal meeting where comparison of his or her ratings with that of the supervisor shall be made.

125. Performance During Probation period

(1) The performance of new staff shall be reviewed either after three (3) months or six (6) months depending on the job category, the purpose of this review shall be to determine whether the staff has been able to perform his or her duties satisfactorily and whether he or she shall be confirmed to employment.

(2) The respective commissioners or supervisors shall carry out a performance evaluation to determine suitability for confirmation for permanent employment or termination as the case may be, such evaluation shall be carried out and communicated to the Division responsible for Human Resources at least one month before expiry of the probation period.

(3) The probationary period may be extended for a period not exceeding one month if management deems it necessary, where the staff probationary period is extended the staff shall be informed in writing the reasons thereof.

(4) In case of an interruption during the course of probation, the probation may be extended to cover the period of absence.

(5) If the staff has not performed to the expectations of the Authority, but there is a reason to believe the staff may be able to do so if allowed, additional probation period may be extended, counselling shall be done and staff counselling record be maintained.

(6) The staff shall be notified of the decision by the last day of the probationary period. If he or she is absent, the probationary period may automatically be extended until the close of business on the first day the staff returns to work.

(7) The appointing authority or a newly recruited staff on probation may terminate appointment at any point before the probationary period expires by giving a twenty-four (24) hours' notice.

126. Poor Performance

(1) Where the staff performance falls below expectations at any time during the performance cycle, the supervisor shall document the performance deficiency and take actions, including (if appropriate) disciplinary action, to assure that performance expectations shall be met within a reasonable period of time.

(2) The supervisor shall document the performance that falls short of expectations by preparing a corrective action plan or other documentation. The document shall specify:

(a) the performance problem;
(b) the steps to be taken to improve performance, including timeframe for improvement;
(c) the consequences of failure to improve; and
(d) a follow-up meeting date.

(3) A corrective action plan shall be considered successfully completed only when the staff actual performance has improved to the point where expectations are being met.

(4) The methods by which staff shall be appraised and the job descriptions to be used as indicative of performance shall be determined from time to time and approved by the Board.

(5) There shall be staff performance appraisal report, which shall be completed annually in writing in respect of every staff by his or her supervisor based on continuous appraisal and discussion during the year.

(6) When assessing staff performance, the supervisor shall take into account:

(a) professional or academic qualifications and experience;
(b) knowledge of work;
(c) output and speed of work;
(d) tact, courtesy and grooming;
(e) ability to co-operate with colleagues and persons placed in authority over him or her;
(f) personal conduct;
(g) other special merit or outstanding achievements during the year under review;
(h) integrity.

(7) Every appraiser shall ensure that the appraisal report is completed accurately, without any bias or prejudice and to the best of his or her knowledge.

(8) Every appraise shall be given the opportunity to see and discuss their appraisal form with the appraiser before signing it.

(9) The performance appraisal report shall be countersigned by the appraiser's supervisor or reviewer who shall be at liberty to discuss the appraisal report with both the appraiser and appraise.

127. Appraisal period

(1) The appraisal period shall be one year except during the probation period.

(2) The annual performance appraisal report shall be a summation of the staff annual performance.

128. Performance Appraisal appeal

(1) Any staff not satisfied with the supervisor's appraisal may refer the matter to the respective Head of Division and Department who shall arbitrate and find a solution.

(2) If the matter is not resolved, it may be brought to the attention of Commissioner for Corporate Service, the matter shall be disposed of fairly within one month.

129. Continuous Performance Appraisal

Performance appraisal shall be an on-going continuous exercise throughout the performance period, milestones over the review period shall be documented and maintained in the appraiser's personal file.

130. End of Year Appraisal

(1) The open-ended performance appraisal system shall be used to review the performance of staff on the basis of performance objectives which have been set and agreed upon in advance.

(2) Every staff shall be responsible for completing the performance appraisal form annually rating him or herself objectively and discussing his or her own performance objectives and development plans with his or her supervisor

(3) The End Year Appraisal shall take place at the end of the appraisal period. The appraiser and appraise shall meet at the end of the year to discuss the overall performance over the appraisal period.

(4) Prior to the meeting, the appraise shall prepare a preliminary assessment of the extent to which his or her set performance targets have been achieved as agreed at the beginning of the performance period.

(5) The appraiser and appraise shall discuss the agreed performance targets together with any changes or comments from the mid-year performance appraisal.

(6) The appraiser shall assess the extent to which the appraise has achieved the performance targets set, taking into account any unforeseen developments that may have affected performance during the period, the appraiser shall also assess the appraiser's core competencies and values and indicate his or her views in the appraisal form.

(7) The supervisor shall be responsible for rating the performance of the staff against set objectives and discussing with the staff the performance objectives for the following review period.

(8) The completed form by the supervisor shall be submitted to the respective Head of Division or Department, the Head of Division and Department shall be required to assess whether the appraisal has been conducted in a fair and objective manner and whether the set objectives are realistic and in line with the overall objectives of the Division, Department and the Authority

(9) The Commissioner for Corporate Service shall cause the appraisal forms to be filed in the personal confidential file of the staff and a copy of the appraisal form shall be provided to the staff.

131. Recognition and Commendation

The process of performance appraisal shall assist the management to make decisions in the following areas:

(a) Reward and sanction in relation to performance.
(b) Identification of job-related staff development needs or training needs.
(c) Confirmation in appointment.

132. Adverse Appraisal Reports

(1) Staff who receives an adverse performance appraisal report shall be liable to a written warning, for the purpose of these Regulations adverse performance means staff performance rating below 50%.

(2) If there is no improvement in work performance in the following appraisal period the staff shall be liable to further disciplinary measures including demotion.

(3) Any grievances arising from the use of the appraisal system shall be resolved in accordance with the approved Authority grievance procedure.

CHAPTER XII
COMPENSATION, SALARY AND ALLOWANCES

133. Compensation

(1) The Authority recognizes and is committed to the sound management of its staff total compensation as an essential component in the effective management of personnel

in the authority, this is to ensure cost-effectiveness, efficient and effective formulation and implementation of Authority policies and programmes,

(2) Compensation consists of both salary and non-salary elements. Salary elements include basic salary and performance awards, non-salary elements include benefits such as retirement on medical grounds, disability allowance, pension, job specific allowances and death-related benefits.

134. Remuneration

The Authority shall endeavour to have a fair competitive and attractive remuneration scheme so as to be able to recruit, motivate and retain qualified staff.

135. Entry Points

(1) A newly appointed staff shall be placed at the appropriate salary scale approved for such a grade.

(2) There shall be a file for every staff maintained at the Corporate Service Division, the Corporate Services Division shall provide the personal numbers after identification of the staff.

(3) Salaries shall be paid as per the letter of appointment indicating acceptance of offer with effect from the date the staff reported for duty.

(4) Removal of staff from the payroll shall be directed by the Commissioner for Corporate Service and may be on account of resignation, death, retirement, dismissal, and termination of contract or expiry of contract.

(5) All salaries shall be paid through the staff bank accounts except for casual staff who shall be paid on a daily basis and may need to identify themselves using their national or other appropriate identification cards when receiving their cash payments.

(6) A casual staff who may be engaged for more than a day may elect to be paid the accumulated wages through a bank account.

(7) The Department responsible for human resources shall be responsible for ensuring timely preparation and payment of salaries and wages to staff.

(8) The Head of Department for Human Resources shall ensure timely prepared payroll is submitted to the Commissioner for Corporate Service by 15th day of every month for verification and confirmation before the Commissioner General's approval for the Finance Department to execute the payment.

(9) In collaboration with the Finance Department, the Human Resources and Administration Department shall ensure that statutory and other deductions are affected and remitted to the relevant authorities.

(10) The Human Resources Department and the Finance Department shall ensure that only *bona fide* staff are paid salaries.

136. Salary Administration

(1) The determination of salaries and salary scale shall be in accordance with the organization structure, Scheme of Service and salary structure, the salary paid to staff is initially dependent on the entry grade and subsequent increments shall be based on the individual's performance.

(2) Any grievance with respect to the job grade or salary shall be lodged through the Head of Division or Department who shall forward it to the Commissioner for Corporate Service.

137. Payroll

(1) Staff names shall be added to or deleted from the Authority payroll only upon written instructions from the Commissioner for Corporate Service.

(2) Staff salary shall only be changed through a written authorization from the Commissioner for Corporate Service.

138. Payment of Salary

(1) It is a policy of the Authority to pay salaries promptly after the necessary statutory deductions have been made, an individual staff remuneration package is confidential and shall not be discussed with other staff.

(2) The pay period for all permanent and contractual staff shall be on a monthly basis, with salaries being processed not later than the last day of the month. Net payments shall be sent directly to the bank accounts of staffs.

(3) Salary shall not be paid in cash.

(4) The Commissioner for Corporate Service shall ensure only bona fide staff are captured in the payroll system on time and paid their salaries as provided in their letters of appointment or contract and annual increments.

(5) Salary slip indicating basic salary, gross salary, deductions made, resultant net salary and outstanding Authority liabilities shall be forwarded to staff every month. The head of department responsible for finance shall forward a copy of monthly paid payroll to the Commissioner for Corporate Service, for reconciliation.

139. Payroll Deductions

(1) Staff monthly salary shall be subject to statutory deductions and other deductions as may be agreed or instructed by the staff.

(2) The Authority shall withhold statutory deductions and relevant taxes from each staff gross salary. In addition, deductions shall be made from staff salary for benefits such as retirement contributions, advances and other monies owed to the Authority as well as any other amount specified by the staff such as insurance.

(3) Staff shall complete the necessary forms and inform the human resources Department in writing of those deductions they authorize at the beginning of their employment or when they occur. All changes to the payroll shall be effected in writing through a Pay Change Advice (PCA).

140. Annual salary Increments

(1) Every staff may be eligible for an annual salary increment until the maximum of his or her salary grade, staff shall not be allowed to cross the bar into a higher salary grade except on promotion or appointment to a higher post.

(2) Staff whose performance is unsatisfactory or below the required standard, shall not be granted any increment or be allowed to cross the efficiency bar where applicable, until they improve their performance.

(3) Annual increment is an award for good outstanding performance during a particular period through the Authority's discretion.

(4) The salary increment of staff may be withheld if:

(a) the appointing authority is satisfied that the staff has performed unsatisfactorily;
(b) disciplinary or criminal proceedings have been instituted against the staff;
(c) the staff has been issued with a stoppage of increment for a breach of the disciplinary code or unsatisfactory performance during the review period.

(5) Where it is decided that the salary increment(s) be withheld, the staff shall be informed in writing specifying the reasons upon which the decision has been based and when restored, no arrears shall be claimable.

141. Salary Review

Management shall review salaries from time to time to factor in the market trend subject to the recommendation of the Board and the approval of the Minister.

142. Grading structure

The Board shall establish and maintain a staff grading structure based on job requirements, qualifications and merit, the grading structure shall be reviewed regularly to keep pace with the Labour market developments.

143. Salary Advances

(1) A salary advance shall be granted to staff owing to unforeseen circumstances, which places him or her in a difficult financial position requiring assistance from the Authority.

(2) To qualify for a salary advance:

(a) staff shall not have any outstanding salary advance or disciplinary case;
(b) recovery of the advance to be in three (3) months.

(3) In approving the salary advance, the approving officer is to ensure that it complies with the one third (1/3) rule where the respective staff's total deductions do not exceed two third (2/3) of his or her basic salary.

144. Staff Benefits

A benefit is any gain that accrues to the staff by virtue of his or her employment or grade, the benefits that exist at Authority are:

(a) medical benefit scheme;
(b) allowances such as house allowance, commuter allowance, leave allowance and telephone allowance (where it applies);
(c) specific benefits are stipulated in individual staff letters of appointments or contracts.

145. Pension or Gratuity Benefit Scheme

(1) Staff on permanent terms of employment shall be eligible for membership to the Pension Scheme.

(2) Staff on permanent terms of employment shall be entitled to Authority contribution to Pension Schemes.

146. Gratuity

Staff appointed on contract terms for a period of one (1) year and above, shall be eligible for gratuity as stipulated in their letters of appointment and as per the existing law.

147. Allowances

The Authority shall pay allowances within the budgeted provisions, these allowances may include house or rent, commuter, fuel, responsibility, entertainment, acting, special duty, passage and baggage, leave, domestic worker, professional, electricity and water, security, telephone, hardship, risk, furniture, clothing, car, motorbike loans, extraneous allowances and any other that the Board may approve from time to time.

148. Commuter Allowance

Staff shall be entitled to commuter allowance. The rates of commuter allowance shall be determined by the management and approved by the Board.

151. Hardship Allowance

Staff working in hardship areas as defined by the Authority shall qualify for payment of hardship allowance. The rate of hardship allowance payable shall be as provided by the Authority from time to time or by a negotiated Collective Bargain Agreement

152. Incentive Allowance

(1) This is an allowance paid to staff to compensate them for extra duties occasioned by the demands of their busy offices.

(2) This allowance shall be paid to compensate such staff for the extra hours incurred or working over public holidays and weekend as may be determined by the management.

153. Subsistence Allowance within the Country

(1) When an officer travelling on duty is required to stay overnight away from his or her permanent station and makes his or her own arrangements for boarding and lodging, accommodation allowance shall be paid to him or her at the rates determined by the management and approved by the Board.

(2) Eligibility for this allowance and the period of absence from the permanent station shall be determined in each case by the Management taking into account such factors as the distance, mode of travel, nature of assignment and the time taken to travel from the permanent station to a specified destination.

154. Subsistence Allowance outside South Sudan

(1) Staff who is required to travel on duty outside South Sudan shall be granted subsistence allowance at the daily rates as per the government rates as specified from time to time.

(2) When staff travelling, boarding and lodging expenses are paid in full directly to the hosting institution or hotel by the Authority or any other organization, a residual or

topping-up allowance of up to one-third (1/3) of the standard rate of subsistence allowance may be paid to him or her to cover incidental expenses.

(3) An officer travelling on duty abroad is normally expected to regularize his or her expenses within the standard rate of subsistence allowance.

(4) In very exceptional circumstances, for example, when hotels are heavily booked during an international meeting and the staff has no choice of accommodation or when the standard rate of subsistence allowance is insufficient for any other justifiable reasons, consideration shall be given by the management for a refund of the additional expenses on production of receipted bills in respect of actual expenditure incurred.

155. Specified Individual Rates

The specified individual rate in respect of subsistence allowance payable to every category of staff shall be determined by Management as per negotiated Collective Bargain Agreement or any other existing regulations.

156. Telephone Allowance

Due to the nature of their duties and level of responsibility, some categories of staff may be eligible for telephone allowance, the rates and eligible categories of staff for this allowance shall be approved by the Board.

157. Transfer Allowance

(1) A staff who is transferred from one duty station to another shall be eligible to transfer allowance in the following manner:
   (a) the allowance shall be paid in addition to any other allowance for which the staff is eligible;
   (b) transfer allowance shall be paid once at the rate approved by the Board;
   (c) the transfer shall be at least forty (40) kilometres away from the staff current station.

(2) Transfer allowance shall not be payable if the transfer of such staff is temporary, for instance, relief duties or for a period not exceeding three (3) months, such staff shall be entitled to their subsistence allowance.

158. Acting Allowance

(1) Acting allowance shall be payable to staff who is called upon to perform duties of a job position above his substantive post, following the temporary or permanent vacation of the post by the substantive holder.

(2) The staff appointed to act shall in every way be qualified and experienced to perform the duties of that particular post.

(3) The amount of acting allowance shall be calculated as the full difference between the minimum salary applicable to the staff job and the minimum basic salary attached to the higher post or 25% of the staff substantive salary, whichever is higher.

(4) The qualifying period for the payment of acting allowance shall be a minimum of thirty (30) days, continuous period, but the acting appointment should not continue for a period exceeding six (6) months.

(5) The acting allowance shall also cease when the acting staff is confirmed to the position or when the position is substantively filled

159. Expense Reporting

Where staff is paid any reimbursable allowance, they shall promptly and honestly account for the same to the Authority within forty-eight (48) hours after completion of the task or returning from a journey.

CHAPTER XIII
TERMINATION OF EMPLOYMENT

160. Factors Leading to Termination of Service

(1) Termination is cessation of employment.

(2) The services of the staff shall cease on:
(a) incapacity of the staff to perform work as required by the employment contract;
(b) repeated failure by a staff to perform work required to a satisfactory standard;
(c) disciplinary grounds or Gross misconduct of a staff at work or in the course of carrying out his or her duties;
(d) changes in the operational requirements of the Authority of which the staff has no capacity to operate;
(e) resignation;
(f) retirement;
(g) medical grounds;
(h) end of Contract;
(i) termination in lieu of reinstatement;
(j) removal in Public Interest;
(k) accepting appointment to another institution other than by way of secondment; or
(l) death.

161. Notice of Termination

(1) An employment contract may be terminated by either the Authority or the staff:

(a) after continuous service by the staff for one year or more, one-month notice to the other party;
(b) after continuous service by the staff for six months or more, but less than one year, a two week notice of the other party;
(c) after continuous service by the staff for less than six months, one week notice to the other party.

(2) The Authority shall not give notice to any staff who is on leave and, conversely, staff shall not give notice to run concurrently with leave.

162. Termination for Incapacity

The Authority may terminate an employment contract where staff is incapable of performing his or her work satisfactorily due to an illness or injury which is certified by the Medical Commission to be permanent

163. Termination for Unsatisfactory Performance

The Authority may terminate staff whose performance is unsatisfactory and has been repeatedly provided with a reasonable opportunity to improve but failed to improve, the staff shall be notified of the possibility of termination and be provided with opportunity to make a defense.

164. Termination on Gross Misconduct

(1) The authority may terminate staff for misconduct where there is evidence on which the allegation is made and that the misconduct constitutes grounds gross misconduct, the staff shall be given an opportunity to respond to the allegation.

(2) Staff shall be said to have been committed gross misconduct if he or she is found to have:

(a) been rendered unable to perform his or her work effectively due to consumption of alcoholic drinks, narcotics, psychotropic substances or additive substances in workplace;
(b) been absent from work for a period of more than seventy-two (72) hours without cause or satisfactory explanation;
(c) violated the fundamental rights of another staff, including, but not limited to, having sexually harassed another staff;
(d) assaulted or altered any co-staff or a member of management at work place or in circumstances which have a real and substantial connection to his or her employment;

(e) negligently or intentionally destroyed or let property of the Authority to be destroyed, resulting to losses to the Authority;
(f) negligently or intentionally exposed any of staff or other personal place of work to risks in contravention of health and safety regulations;
(g) breached the Authority's obligation to protect and keep secure confidential information of Authority unless such breach has been obliged by law upon staff or caused by the Authority or to protect public interest.

165. Termination Based on the Operational Requirements

(1) A staff may be terminated on account of redundancy due to changes in the operational requirements of the Authority.

(2) If it is decided to restructure the Authority, a staff may be retrenched or laid-off, declared redundant in consequence of restructuring for the purpose of facilitating improvements in the Authority by which greater efficiency or economy may be effective

166. Resignation

(1) Resignation is a voluntary decision by staff to terminate his or her employment with the Authority.

(2) The resignation procedure shall be as follows:
(a) a staff who wishes to resign from employment with the Authority shall give a written notice as per the terms and conditions of service;
(b) on the staff last day, the staff supervisor shall conduct an exit interview, after the exit interview, the Authority property in the staff possession shall be retrieved and information regarding final dues clarified;
(c) a staff on probation may resign by giving seven (7) days written notice. In this case, the normal exit interview process shall also be undertaken;
(d) resignation of staff from the Authority shall be put in writing to the Commissioner General, the resignation letter shall state reason for resignation (optional) and the effective date of the resignation.

167. Retirement

(1) A staff of the Authority shall retire from service upon attainment of the mandatory or voluntary retirement age as per Public Service Guidelines or negotiated Collective Bargain Agreement.

(2) Six (6) months before retirement date of staff, the Human Resource Department shall write and notify him of her impending retirement, the letter shall include all information pertaining to the retirement including all the benefits due to the staff at the time of retirement, the staff may write to the Authority to inform it about his impending retirement, the processes to retire the staff can be effected from this point.

(3) Where the Appointing Authority is of the opinion that reasons exist, for staff serving on pensionable terms and who has attained the age of voluntary retirement to be called upon to retire, the Authority may request the staff concerned to show cause why he or she shall not be compulsorily retired.

(4) The Commissioner for Corporate Service shall forward any representations made by the staff pursuant to notice given to him or her under sub-regulation (2) of this regulation, together with his or her own recommendations to the respective Appointing Authority, the appointing authority shall decide whether or not such staff shall be called upon to retire, in the event staff accepts the Authority's call to retire, a special retirement package shall be paid as determined by the existing applicable pension law.

(5) A staff wishing to retire voluntarily shall give notice of retirement six (6) months in advance.

168. Determination of Age

(1) The date of birth shall be the date specified in the birth certificate or age assessment and declared at the time of recruitment; provided that, where only the year (and not the actual date) of birth of staff has been recorded, his or her age shall be determined by deeming his or her date of birth to be the first day of January of the year.

(2) Where only the month and year of birth have been recorded, the date of birth shall be deemed to be the sixteenth day of that month (fifteenth in the case of February).

169. Retirement on Medical Grounds

(1) Where the Authority is of the opinion that staff is incapable of satisfactorily discharging the functions of his or her office due to ill health, or if the staff so request, it shall call upon such staff to present him or herself before an approved medical doctor with a view to ascertaining whether or not such staff is incapable.

(2) After the medical doctor has examined, the doctor's report has to be certified by the Medical Commission, the report of the examination with recommendations, by the Commission shall be forwarded to the Commissioner General for a decision.

(3) A period of one-month notice shall be given to staff who is required to retire on medical grounds.

170. Death of Staff

(1) The contract of employment of staff in Authority shall come to end one month from the death of staff, unless it is otherwise legally determined.

(2) Upon death of staff, the Authority shall provide assistance to his or her immediate family as per the terms and conditions of service and the CBA.

(3) In case of death of a staff, the terminal benefits shall be made to the deceased staff's next of kin.

(4) To avoid legal tussles, the Authority shall pay these benefits to the legally recognized next of kin only as indicated by the deceased staff and recorded in the personal file.

171. Terminal Benefits

(1) Staff whose employment is terminated by the Authority shall be eligible for all applicable benefits.

(2) On termination of employment, staff shall be entitled to the following terminal benefits, provided that any staff, who are convicted of any criminal offence which involves corruption or embezzlement of the public funds, shall forfeit all his or her rights or claims.

172. Clearance

A staff shall surrender all Authority properties including Identity and Authority Card immediately he or she ceases to be a staff of the Authority. **Clearance Form** shall be filled in respect of that staff and verified by relevant parties prior to processing of terminal benefits. In case of death of an employee the clearance form shall be completed in consultation with spouse or near relative of the deceased staff.

173. Certificate of Service

(1) The Authority shall give a certificate of service to staff who resigns or have to leave the Authority, the certificate shall state the dates of commencement and termination of employment, position held, reason for termination and any other relevant information.

(2) A staff leaving the Authority shall receive a certificate of service from the Commissioner for Corporate Service after they have been officially cleared.

174. Membership to Workers Unions

(1) The Authority Management recognizes any workers' union that has successfully concluded a collective bargaining agreement with the Authority.

(2) A staff is free to join their respective unions in order to articulate their grievances and negotiate with the Authority on matters of mutual concern and regarding their terms and conditions of service.

(3) Meetings of staff unions may not take place during office hours without permission from the Commissioner General.

175. Transport

(1) When staff is travelling on duty outside his or her duty station, official transport shall be availed.

(2) Where official transport is deemed as inconvenient and or uneconomical, use of public transport shall be allowed, unless it is considered convenient for the staff to use his or her personal car with the express written approval of the Commissioner General or someone delegated by him or her to undertake this activity.

176. Travelling by Personal Car

(2) Where the official transport is not available and the use of public transport is considered unsuitable when travelling on duty, a staff may seek permission from the Commissioner General through his or her Head of Department, to use his or her own car.

(3) Permission shall normally be granted where the use of one's car is economical and in the interest of the Authority.

(4) Where possible, officers shall travel together in one motor vehicle.

177. Traveling by Air

(1) When travelling on duty to another country, a staff shall normally travel by air.

(2) For all those who hold diplomatic, special and official passport travelling to any foreign country shall get clearance from ministry responsible for foreign affairs.

(3) Air travel on duty within South Sudan shall require the prior approval by the Commissioner General or any other delegated staff. Such approval may be given only if other modes of transport are unavailable or air travel is economical or where the saving of time is paramount.

(4) Air booking for staff shall be arranged with the airline approved by the management.

178. Reimbursement of Taxi Fare

(1) When travelling on duty, staff shall be reimbursed the cost of taxi fares at prevailing rates from his residence to the official destination, provided that public or official transport is not available.

(2) Staff who makes use of his or her own car in the aforesaid circumstances may claim normal duty motor vehicle allowance as per approved rates.

(3) Claims for motor vehicle allowance or for the reimbursement of taxi fares shall be certified by the claimant to the effect that no official transport was available.

179. Baggage Allowance by Air on Duty

Staff travelling on duty by air shall not normally be granted any baggage allowance in addition to the free allowance on his or her air ticket, unless an excess is required for official purposes in which case reimbursement for the excess baggage will be considered.

180. Authority Vehicle Register

(1) A register of all the Authority vehicles shall be maintained. The register shall include the following particulars:
(a) description of vehicle
(b) chassis number
(c) engine number
(d) registration number
(e) the date the vehicle is put into service
(f) department to which allotted
(g) the date of disposal of the vehicle
(h) vehicle Inspection Dates
(i) vehicle Insurance Dates

(2) The vehicle log books shall be maintained by the Transport Section to provide an operating record up to the time of its disposal.

(3) Authority vehicles shall periodically be inspected. Any damage or defect noticed during inspections shall be recorded and reported to the Transport officer for action.

181. Immobilization of the Authority Vehicles

(1) Wherever official vehicles are garaged and parked the vehicles must be immobilized by removal of the switch key, where driving cabins are provided with doors with locks, the doors of the vehicles shall be locked and the keys moved.

(2) The Authority vehicles shall be parked or garaged only at designated places.

182. Drivers

(1) All personnel required to drive official vehicles shall have a valid driving license.

(2) A driver shall not drive a type of vehicle for which he or she is not licensed.

(3) Staff authorizing the use of the Authority vehicle by a driver who does not possess a valid license shall be held responsible for any pecuniary loss to the Authority that may result.

(4) The cost of annual driving licenses of established official drivers shall be met from Authority funds.

(5) In exceptional circumstances, and with the written authority of the Commissioner General, an official vehicle shall be driven by an officer other than an approved official driver.

(6) An officer who fails to produce such written authority, in addition to the driving license, shall be subject to severe disciplinary action. This requirement shall not, however, apply to a senior officer who is allocated a vehicle for personal use.

(7) Drivers of the Authority must at all times set high standards of road safety, desist from smoking, unnecessary talking, well-groomed and wear safety belts at all times. The driver shall ensure the Authority Vehicle assigned to him or her is in good working condition and clean at all times.

183. The Transport Work Ticket

(1) The use of a work ticket for the Authority vehicle is mandatory. Any driver of the Authority found operating without a work ticket properly authorizing the journey in question, or found deviating from the route authorized, or found carrying unauthorized passengers or goods, shall be subject to disciplinary action.

(2) The instructions set out in the front cover of the book of work tickets must be made known to all drivers and other officers responsible for the management of the Authority transport.

(3) A summary of fuel, oil, and distance travelled, shall be recorded, with the relative work ticket number, in the vehicle log book on completion of each such ticket, or at the end of each month shall a ticket remain incomplete at the end of that month. A new work ticket shall be issued at the beginning of every month.

184. Maximum Speed

Drivers of vehicles of the Authority shall at all times observe the statutory speed limits while not exceeding the maximum speed allotted to the class of vehicle being driven. The maximum speed allowed shall be displayed on the dash board of the vehicle.

185. Use of Authority Vehicles

(1) The Authority vehicles are intended for official purposes and shall never be used for private purposes such as business or pleasure.

(2) It is the responsibility of the relevant Head of Department to ensure that official vehicles are properly and carefully used. An officer who makes improper use of an official vehicle shall render himself liable to disciplinary action.

(3) In order to prevent unauthorized use of official vehicles, all officers are duty bound to report to the appropriate authority and in detail any Authority vehicle which can reasonably be suspected of being in unauthorized private use.

(4) Adequate comprehensive insurance cover of the vehicle, the driver and passenger's liability shall be taken at all times.

186. Ignition Keys

The ignition keys of all Authority vehicles, with the exception of ambulances, shall be handed to the
Transport Officer or the officer-in-charge of the vehicle, outside office hours.

187. Government Vehicle Check Unit

The relevant police unit set up by South Sudan police is empowered to stop and check any Authority vehicle and to prefer charges (where appropriate) against the drivers. Where the charges are preferred on such checks, a report should be submitted by the driver to the Transport officer.

188. Accident Reporting

(1) All officers and drivers in charge of vehicles of the Authority's motor vehicles shall acquaint themselves with provisions of the relevant traffic laws that make it

obligatory for a driver of a vehicle involved in an accident to stop and cooperate with police officers and a response team.

(2) Under all circumstances, a driver involved in an accident shall report immediately the facts of the accident to the nearest police station or police on duty.

(3) In addition to any report to the police, a detailed accident report shall be rendered on the day of the accident to the transport officer, giving the following particulars;
(a) number of the vehicle and name of the driver;
(b) place, time and brief circumstances of the accident;
(c) name of any other person or persons, who have, or whose property has suffered damage, or who have caused damage to the vehicle of the Authority and the number of their vehicles;
(d) estimate of damage suffered by the Authority vehicle or its personnel or property or both;
(e) the date on which the accident was reported and the name of the police officer who took the report and the police station where it was made.

(4) Where the Authority incurs expenditure, whether by reason of any third party claim or otherwise, as a result of any accident to any Authority vehicle and such accident is wholly attributable or in part to the negligence or misconduct of any employee, the latter may be required to reimburse to the Authority the whole or part of any such expenditure.

CHAPTER XIV
MISCELLANEOUS PROVISIONS

189. Anti-Harassment

(1) The Authority shall provide a work environment that is free from any form of harassment, including sexual harassment and bullying, any form of harassment is totally unacceptable and the Authority recognizes the adverse effect such behaviour has both on people who work in the Authority as well as the clients.

(2) All staff and stakeholders, have a right to be treated with equality in regard to dignity, concern and decency. Any action or inaction, communication or behaviour that may reasonably be interpreted as harassment or bullying shall not be tolerated.

(3) The Authority provides impartial processes for dealing with harassment and bullying and assists in the resolution of complaints.

(4) Harassment of any kind, if proven, constitutes unacceptable behaviour, the Authority shall institute disciplinary action, if a staff is found to have been engaged in harassment of any kind either against colleagues or other stakeholders.

190. Actions that Qualify as Harassment

Harassment may be in the form of racial, tribal, gender, marital status, religious or ethical belief, disability, age, political opinion, employment status, family status, sexual orientation, or involvement in carrying out the activities of the Authority, the following also constitute harassment:

(a) The improper use of power based on administrative or managerial status to insult, bully, dominate, manipulate, disadvantage or discriminate may also constitute harassment.
(b) For the purpose of this sub-regulation, Bullying means repeated, deliberate and targeted conduct by a person towards a member (or members) of the Authority community which is offensive, intimidating or humiliating and which detrimentally affects that member's well-being.
(c) Romantic or sexual relationships between individuals in a supervisory, evaluation, advising, coaching, or counselling relationship.

191. Reporting Harassment Cases

(1) A victim of any harassment shall act promptly report the matter to the respective authority, such individuals shall seek initial guidance and advice from the head of legal administration and any other relevant administrative officer within the Authority, following such discussions, the person may choose: to take no further action; to attempt to resolve the issue or to request formal intervention.

(2) If the aggrieved person undertakes to resolve the situation independently, the legal officer shall follow up within reasonable time to ensure that the problem is resolved.

192. Making a Formal Complaint

(1) Any formal complaint of harassment shall be made in writing to the Commissioner General within seven days of the occurrence of the event.

(3) The person complaining ('the complainant') shall write a brief written summary of the incident or incidents of alleged harassment, sign and date, the statement shall be given to the person being complained about ('the respondent').

(3) Formal complaints shall be dealt with as quickly as possible, and in the normal circumstances within one month. A decision shall be made by the legal officer responsible in consultation with the parties, as to the most appropriate managed intervention process in the circumstances.

(4) It is recognized that some alleged behaviour may constitute serious misconduct and possibly a criminal offence to be referred to appropriate Disciplinary Committee or external authorities.

(5) The legal officer may set up processes to resolve complaints impartially, sometimes involving a mediator, such processes are confidential and agreed to by both parties.

(6) Complainants have the right to withdraw the process at any stage, this does not halt further investigation or action of disciplinary procedures.

(7) Regardless of the outcome of the proceedings, complainants shall not suffer any consequences unless the accusations were deemed malicious.

193. Confidentiality

(1) The Authority shall maintain confidentiality on any cases unless there are exceptional circumstances involving probable risk to the safety of any individual.

(2) Due to the possibility of defamation proceedings, all information shall be kept as confidential as possible, complainants and respondents are advised not to discuss any matters pertaining to a complaint with anyone other than those directly involved or court.

(3) The Authority shall observe the principles of natural justice and procedural fairness by ensuring that staff whose interests may be adversely affected by a complaint is aware of the allegations against them, including the identity of the person making the allegations, and given the opportunity to respond.

(4) The Authority may follow up on anonymous complaints where credible information is provided.

(5) The parties involved with or affected by complaints dealt with under these procedures are entitled to a fair hearing and are kept fully informed throughout the process.

194. Sanctions that May Be Applied

(1) Allegations that are proved true shall be dealt with as per the disciplinary procedures as set out in this Regulations.

(2) Alleged serious misconduct proved correct shall, with the consent of the complainant, be referred to public prosecution attorney, this may include alleged cases of physical assault, sexual assault and rape.

(3) Any person who made a complaint that is found to be false or annoying, sanctions shall be applied through the normal disciplinary proceedings.

195. Representation

At any time during the proceedings of allegations on harassment, a complainant or respondent may seek internal representation by any other staff for fairness and objectivity.

CHAPTER XV
GENERAL PROVISIONS

196. Visitors

Visitors to the Authority offices be guided as follows:

(a) Official visitors shall not be entertained without prior appointments.
(b) Visitors shall obtain visitors passes before proceeding to the respective offices.
(c) Receiving of official visitors into the offices shall be confined to Senior Management and Head of State Revenue Offices only.
(d) Where necessary staff may meet with their visitors at the visitors or reception lounges.
(e) Unofficial visitors shall not be allowed in the Authority offices at any time and day.

197. Communications

Only the Commissioner General or an officer authorized by him or her can make public statements on behalf of the Authority.

198. Internal Communication

(1) Staff who wishes to submit matters for consideration by higher authorities shall submit the same through his immediate supervisor or his or her Head of Department. In forwarding letters sent through them the supervisor or Head of Department or their representative shall give their appropriate versions or comments.

(2) All correspondence shall be sent to the Commissioner General through the respective Head of Division or Department provided that sensitive or confidential information of ethical nature may be addressed directly to the Commissioner General.

199. Use of Authority's IT-Systems

Staff are responsible for using the Authority's ICT resources entrusted to them in a manner that is ethical, lawful and safe. The Authority reserves the right to access and monitor the usage of these resources. Staff shall avoid abuse of the ICT resources and shall comply with the Authority's policies on information security and ensure that information confidentiality, availability and integrity are not compromised.

200. Fund Raising

Permission shall be obtained from Management before fund raising or collections for charitable activities are made in Authority premises.

201. Employee Property

The Authority will not be held responsible for the safekeeping of any personal property of staffs left within the Authority premises.

202. Employer's Right to Search

The Authority shall have the right to search any of its staffs within its office premises where there is reliable evidence or reasonable ground that a staff has unauthorized item in his possession, with the approval of the Head of Division/ Department, Head of State Revenue office or Station in charge.

203. Loss, Theft or Damage of Authority Property

(1) Loss or damage of the Authority property including accidents involving Authority property, burglary or theft of goods deposited in Customs, including property entrusted to the Authority or in Bonded warehouses shall immediately be reported to the immediate supervisor, Head of Division or Department or the police as the case may be.

(2) Where the staff by his or her act, omission by his or her negligence, misconduct or by reason of his or her failure to take reasonable care or to discharge his or her duties in a reasonable manner, causes the Authority to suffer any loss or damage to any property, the amount of such loss or the value of the property damaged or an amount equal to the cost of repairing such property or such portion of such amount or value as the appropriate authority may determine, may be recovered from such staff.

204. Evidence by Staff

(1) Any staff called upon to give evidence, whether within or outside the Authority, in any matter involving the Authority and which he or she is conversant shall provide true and consistent evidence.

(2) Where staff is required to appear in court as a witness in a case which the Authority is a party, that staff shall seek clearance from Commissioner General. Upon such clearance being given, when appearing in court, such staff shall endeavour to protect the interests of the Authority

205. Legal Proceeding in Court

The Board or the Commissioner General shall not be held liable for any act or omission done bona fide or lawfully in the course of executing the powers, mandate and functions of in event there is damage arising out of such act or omission. The Authority shall be vicarious liable for such act or omission.

206. Legal Representation

(1) When a civil or criminal action is instituted against staff, Board member as a result of their official position or an act done or committed in good faith when executing official duties on behalf of the Authority, the Authority shall assist to engage an advocate:

(a) if the staff loses the case and is required to pay any sum by way of damage, costs, fine or compensation, such payment may be met by the Authority.

(b) If the staff is successful in his or her case and is awarded a cost and or damages, he or she shall be required to refund the Authority the amount of financial help he or she received or the amount of damages and or cost recovered, whichever is less.

207. Savings and Credit Societies

Staff may be allowed to form and take part in credit and savings society at place of work following Management approval.

208. Handing Over Report

(1) In re-deployment, transfer or termination of appointment, staff shall prepare a comprehensive handing over report under the supervision of the immediate supervisor.

(2) A copy of the handing over report dully approved by the supervisor shall be submitted to the Human Resource section. In addition, the staff shall handover all assets and equipment of the Authority that were at his or her disposal.

209. Amendment of the Regulations

These Regulations shall be amended within the framework of the Civil Service Act, Labour Act and its Regulations or any affected related matter.

Schedule 1

SCHEDULE OF OFFENCES AND PENALTIES: OFFENCES WARRANTING SUMMARY PROCEEDINGS

S/N	NATURE OF OFFENCE	1st Commission the offence	2nd Commission of the offence	3rd Commission the offence
1.	Being late for duty without lea reasonable cause.	Warning	Reprimand	Stoppage of increment
2.	Absence from work place during working hours without leave.	Written Warning	Reprimand	Stoppage of Increment
3.	Absence from duty without leave.	Written Warning	Reprimand	Stoppage of Increment
4.	Failure to complete a task within specified period.	Written Warning	Reprimand	Stoppage of Increment
5.	Negligence in the performance of duties not affecting safety of persons or property.	Written Warning	Reprimand	Stoppage of Increment
6.	Failure to comply with Instructions not Amounting to insubordination.	Warning	Reprimand	Stoppage of increment
7.	Failure to Institute Disciplinary Action by the Supervisor	Written Warning	Reprimand	Stoppage of Increment
8.	Carrying out private affairs during working hours at place of work	Written Warning	Reprimand	Severe Reprimand
9.	Smoking in a place which the employer has forbidden	Written Warning	Reprimand	Severe Reprimand
10.	A staff who receives an adverse Performance appraisal report.	Warning	Reprimand	Demotion
11.	Failure to complete and submit the assets and liability declaration forms by the scheduled date	Written Warning	Formal Proceedings	
12.	Failure by a supervisor or senior officer to take reasonable steps or precaution to ensure integrity or devotion to duty of all staff under his control	Written Warning	Reprimand	Demotion

S/N	NATURE OF OFFENCE	1st Commission the offence	2nd Commission of the offence	3rd Commission the offence
13.	To participate without prior authority in the editing or management of a newspaper, or any publication, or to publish an article or book or participate in any broadcast relating to the Authority either in own name or anonymously.	Warning	Reprimand	Demotion
14.	Failure to attend official functions without justifiable grounds.	Written Warning	Reprimand	Demotion

Schedule 2

GROSS MISCONDUCT WARRANTING FORMAL PROCEEDINGS

1	Unauthorized use or abuse of office facilities
2	Dishonesty or any other breach of trust
3	Neglects or fails to carry out duties so as to endanger him or herself, others or property or neglects or fails to comply with any instructions relating to safety or welfare.
4	Commits any unjustifiable assault at the place of or in the course of work.
5	Commits an unjustifiable assault, whether or not at his or her place of work, on a supervisor or a member of the Management.
6	Commits any serious or repeated act of insubordination during working hours against the managerial employee.
7	Is unable to perform his or her work efficiently by reason of the use of illicit drugs or alcohol.
8	Refusal to be tested for alcohol or illicit drugs.
9	Wilful disobedience to a lawful order given by a superior or use of abusive language at place of work.
10	Refusal to comply with a transfer order.

11	Is convicted by a court of law of criminal act at the place of work or in the course of work.
12	Is convicted by a court of law of a criminal offence involving fraud or dishonesty or drug trafficking.
13	Being in possession of the Authority property or funds or any other property within the course and scope of employment without permission.
14	Lack of qualifications or skills which the employee implies or expresses to possess.
15	Concealing information regarding past employment or personal record.
16	Without due authority discloses or conveys to unauthorized person any information to the prejudice of the Authority.
17	Gives or receives any bribe or induces or attempts to induce any person to bribe him or her to perform a corrupt act.
18	Assist or facilitate customers whether directly or impliedly to smuggle or cause revenue loss.
19	Fraudulently clearing of goods of which part or whole of duties were not collected.
20	Carries or engages in any act or business which has a direct conflict of interest with the Authority.
21	Gross negligence in the performance of duties.
22	Absence from work place for five (5) consecutive working days without permission from the
23	Misrepresentation of facts in the asset and liability declaration forms or second commission of the offence
24	Demonstrating behavior which is against the Authority ethical and core values.
25	Negligence occasioning loss to the Authority.
26	Misapplies or improperly uses the Authority funds or makes false financial records, returns or statements.
27	Fourth or subsequent commission of offence(s) falling under schedule 1 saves for the offence relating to asset declaration.
28	Discontinuation from training on disciplinary grounds.
29	Failure to comply with tax laws on private matters.
30	Use of rude, insulting language from either a supervisor to a subordinate or vice versa or to a taxpayer.
31	Discrimination of any nature to a fellow employee.

32	To become or to act as an agent or a money lender, banking or money lending institution; to borrow money from a money lender, another employee or a member of the public with whom the employee's official duties bring him or her into contract; or to lend money at an interest or commissioner whether to staffs or to members of the public; or to accept premiums from other staff as consideration for doing official duties
33	Failure to disclose private interest in a situation where staff is called upon to deal with any matter or issue in which he or she near relative has a personal interest.
34	Conduct any business on behalf of the Authority or cause the Authority to enter in to a contract or conducting a tax audit for a company that staff or his or her near relative has private dealings with.
35	Sexual harassment at place of work.
36	Bringing the Authority into serious disrepute.
37	To take an active part in political activity, which in the opinion of the Authority is inconsistent with or reflects adversely upon the independence and impartiality required of staffs.
38	Failure by a staff to disclose known facts relating to fraud, forgery, embezzlement or any other unethical acts committed by a fellow staff.
39	Any other act or omission other than those listed in Schedule 1, which constitutes a breach of this Regulations or Code of Ethics.

Issued under my hand in Juba, this…… day of the month of …….in the year 2022

Agak Achuil Lual
Minister
Ministry of Finance and Planning
Republic of South Sudan